This chapter outlines the planning outcomes, controls and objectives that apply in most residential areas of Orange. Several locations, precincts and suburbs of the city are subject to site specific provisions and masterplans that may contradict the more generalised controls. In these cases the site-specific controls and masterplans are intended to take priority.

The following table gives an overview of where each planning outcome (PO) applies. Developments in master-planned areas are still required to address the planning outcomes that are shown as having City-wide effect.

| Planning Outcome | Area(s) where the planning outcome applies | Notes and minor exclusions |
|---|---|---|
| PO 7.2-1 | City-wide excluding Shiralee and Redmond Place Precinct | - |
| PO 7.2-2 | Ploughmans Valley only | - |
| PO 7.2-3 | North Orange – Waratahs only | - |
| PO 7.2-4 | Land in the R5 Large Lot Zone only | - |
| PO 7.5-1 | City-wide excluding Shiralee and Redmond Place Precinct | - |
| PO 7.7-1 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-2 | City-wide excluding Redmond Place Precinct | Shiralee excluded from guideline “c” |
| PO 7.7-3 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-4 | City-wide excluding Shiralee and Redmond Place Precinct | - |
| PO 7.7-5 | City-wide excluding Shiralee and Redmond Place Precinct | - |
| PO 7.7-6 | City-wide excluding Shiralee and Redmond Place Precinct | - |
| PO 7.7-7 | City-wide excluding Shiralee and Redmond Place Precinct | Shiralee lot typologies and controls apply |
| PO 7.7-8 | City-wide excluding Shiralee and Redmond Place Precinct | - |
| PO 7.7-9 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-10 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-11 | City-wide excluding Redmond Place Precinct | Shiralee excluded from guideline “c” & “d” |
| PO 7.7-12 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-13 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-14 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-15 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-16 | City-wide excluding Shiralee and Redmond Place Precinct | Shiralee lot typologies and controls apply |
| PO 7.7-17 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-18 | City-wide excluding Redmond Place Precinct | - |
| PO 7.7-19 | City-wide excluding Redmond Place Precinct | - |
| PO 7.8-1 | City-wide | - |
| PO 7.9-1 | City-wide excluding Redmond Place Precinct | - |
| PO 7.10-1 | City-wide | - |
| PO 7.11-1 | City-wide | - |
| PO 7.12-1 | City-wide | - |
| PO 7.13-1 | Village of Lucknow only | - |
| PO 7.14-1 | Village of Spring Hill only | - |
| PO 7.15.1 | Vicinity of Orange Botanic Gardens only | - |
| PO 7.16-1 | Vicinity of Charles Sturt University and Leeds Parade only | - |

| Planning Outcome | Area(s) where the planning outcome applies | Notes and minor exclusions |
|---|---|---|
| PO 7.16-2 | Vicinity of Charles Sturt University and Leeds Parade only | - |
| PO 7.16-3 | Vicinity of Charles Sturt University and Leeds Parade only | - |
| PO 7.16-4 | Vicinity of Charles Sturt University and Leeds Parade only | - |
| PO 7.16-5 | Vicinity of Charles Sturt University and Leeds Parade only | - |
| PO7.17-1 | Vicinity of Leeds Parade and Miriam Drive only | - |
| PO7.17-2 | Vicinity of Leeds Parade and Miriam Drive only | - |
| PO7.17-3 | Vicinity of Leeds Parade and Miriam Drive only | - |
| PO7.17-4 | Vicinity of Leeds Parade and Miriam Drive only | - |
| PO7.17-5 | Vicinity of Leeds Parade and Miriam Drive only | - |
| PO7.17-6 | Vicinity of Leeds Parade and Miriam Drive only | - |
| PO7.17-7 | Vicinity of Leeds Parade and Miriam Drive only | - |
| PO7.18-1 | 277 Cargo Road only | - |
| PO7.18-2 | 277 Cargo Road only | - |
| PO7.18-3 | 277 Cargo Road only | - |
| PO7.18-4 | 277 Cargo Road only | - |
| PO7.18-5 | 277 Cargo Road only | - |

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# 7. DEVELOPMENT IN RESIDENTIAL AREAS

## 7.1 PLANNING FOR RESIDENTIAL AREAS

The emphasis of planning under Orange LEP 2000 and this associated DCP is for new development to positively contribute to the highly-valued character of the City. Achieving this requires that development recognises and addresses the features of each area.

In established areas, the character has already been defined. New development should clearly relate to the existing development pattern of the neighbourhood.

For new areas, incremental development of new streets and spaces together with house designs will generate a particular character of the area over time. The character of an area is made up of a combination of factors such as type, form, bulk and height of development, building setbacks, design, landscaping, lot sizes, subdivision layout and siting of public places.

The character of Orange Urban Area reflects different development periods. The original “Square Mile” layout of the Orange Village broadly relates to the **Central Orange Conservation Area,** which includes the Central Business District and surrounding residential areas. The residential areas comprise a high concentration of mainly brick heritage houses set behind period fences and gardens to make up impressive streetscapes of houses in wide tree-lined streets set in a grid-street pattern with formal parks, churches, corner stores.



*Photograph - Traditional character – street trees, houses, fences, wide streets and formal parks (Cook Park in background) combine public and private space features to provide the area’s character*

The **East Orange Conservation Area** is centred on the former East Orange Municipality, which grew from suburban development around the turn of the century. A modified grid pattern was imposed around existing roads leading to Orange such as Icely and Bathurst Roads. Single-storey period houses of mixed character and materials surround the central focus of East Orange shops and Dora Street. The two-storey *Bowen Terrace* and the Uniting Church “shield” the area from the activity of Bathurst Road.



*Photograph - Dora Street houses – Dora Street is a focus for the "village character" of East Orange*

The **Glenroi Conservation Area** also applies a modified grid pattern. Set behind the NSW Agriculture Head office, the area also has a mixed residential character with the rows of semi-detached buildings of the *Lamrock Terraces* in Kite Street and single detached houses of varying character elsewhere.

Suburban housing maintained the rectilinear street patterns with interwar housing, such as the Californian Bungalow and P&O style giving way to the fibro and weatherboard "austerity cottage" of the late 1940s and 1950s before more diverse housing styles were introduced in the 1960s. By the late 1960s, the traditional grid pattern was replaced with curvilinear street patterns, the cul-de-sac and irregular-shaped lots.

The "Traditional Neighbourhood Design" movement in the 1990s, with the revival of modified grid patterns and mixed development forms, encourage greater diversity of development and uses in residential areas provided that the development is consistent with the character of the area.



*Photograph - Kite Street near Endsleigh Ave with the western-most "Lamrock Terrace" on left*

# 7.2 RESIDENTIAL SUBDIVISION

## URBAN RESIDENTIAL ZONE

This Plan applies to all land within the Urban Residential zone.

The urban residential zone provides for the majority of housing in the City. Residential areas also include a number of supporting activities such as neighbourhood and corner shops, schools and TAFE, hospitals, medical practices, home businesses, motels, places of worship and some hotels.

## SUBDIVISION – LOT SIZES

Subdivision is development which requires consent in the Urban Residential zone.

Unlike former Orange LEP 11, Orange LEP 2000 does not stipulate minimum lot sizes in urban areas except for the standards-based Complying Development. Traditionally, residential lots in Orange have been relatively large. The Original Village of Orange was laid out with street blocks (also known as "Sections") in10 chain grids (200m) separated by 1½ chain (30m) wide road reserves. Most lots were 1 chain wide by 5 chains deep (20m X 100m). Resubdivision of the original lots over many years has seen smaller lots being created in the central City area and consolidation of land in the centre of many street blocks.

The original town layout was orientated about 10$^{o}$ east of true north, which has implications for accurately determining solar orientation and overshadowing effects.

Residential lots in Orange are predominantly between 600 and 900m$^2$ in area. In recent years, the average residential lot size has reduced from about 800 square metres to about 750m$^2$.

This DCP establishes guidelines for residential subdivision.

The 1999 Contributions Plan identifies three types of residential lots:

- Standard Lot $500m^2$ or greater
- Cottage Lot >350 and <$500m^2$
- Town House Lot 250 to $350m^2$

Lots less than $500m^2$ in area require particular emphasis on layout and design in order that a quality residential environment is created. Lots less than $1,000m^2$ require solar-design considerations.

Applications for lots with areas of $350m^2$ or less (whether as a land, strata or community title subdivision) are to identify the existing or proposed house plan for the lot and indicate living areas, private open space, garages and driveways to demonstrate privacy, solar access, on-site parking and access considerations so that the lot layout can be assessed according to the proposed relationship between lots and buildings.

Applications for lots with areas of between 350 and $500m^2$ need to indicate mandatory side building lines. Buildings constructed on the land are required to have an external wall situated on or adjacent to that line. Such building lines should be on the southern-most or western-most side boundary to optimise solar access.

Lots less than $350m^2$ must be able to define the configuration of a dwelling footprint and associated private open space. Accordingly, a floor plan may be required to be submitted with an application to subdivide.

Cottage or Town House lots are particularly suited to small households. In the 2001 census for Orange City, over 54% of households were couples without children or lone-person households. This percentage also does not take into account one-parent families with one child. The census results also found that the percentage of people living in households comprising couples with children is declining, with 52.5% of the population living in these families in 2001 compared with 59% in 1991.

To provide a range of housing opportunities, a reasonable proportion of lots in urban subdivisions should provide for smaller household demand, unless an overriding planning objective has been established requiring larger lot sizes.

## SPECIAL REQUIREMENTS FOR "BATTLE AXE" LOTS

Lots that gain access to a public road by a narrow accessway between other lots are commonly referred to as battle-axe lots. Such lots need to have sufficient size and shape to permit a house and driveway positioned in a way that allow cars to turn around within the lot. The access-way needs to be wide enough to allow for vehicular access and services such as power, telecommunications, water and possibly drainage and internal sewer.

A 3-metre-wide driveway within an access corridor of 4.5 metres is deemed adequate for access to a battle-axe lot for a dwelling house. A common driveway to two battle axe lots or an access serving 2 dwellings (dual occupancy) requires a 4.5 metre driveway within a 6-metre-wide accessway. Unit developments may require a 6 metre wide driveway to provide for passing cars.

A battle-axe lot should be a minimum of 650 metres in area, excluding the area of the accessway. Battle-axe lots should be designed to provide for solar access and privacy. Where practicable, lots should adjoin open space.

## CORNER LOTS

Corner lots, in recent years, have posed problems for house designers particularly where the lot is not rectangular. Some contemporary houses have been designed to face the corner on an angle,

affecting the useability of private open space. Houses on corner lots in the City historically had a distinct orientation to one street frontage. Each house is then orientated to one street with the secondary street providing for access and a rear/side fence enclosing a rear yard.

A high proportion of Federation period houses in Orange are located on corner lots. The street corner provided a focus for such houses that have a range of rooflines and projections and often an L-shaped verandah that wrapped around the corner. The house normally addressed the smaller frontage with a side fence extending along much of the longer side street frontage.

Corner lots should be designed to provide for a house facing one street. Where dual occupancy development is proposed on a corner lot, each dwelling should face a different street.

## DUAL OCCUPANCIES AND UNIT SITES

An increase in expressed opposition to siting of dual occupancy development in residential areas in Orange indicates a need for sites to be identified early in the development process to permit improved information about lot selection for residential-land purchasers.

Applications for subdivision in new release areas need to indicate a reasonable proportion of sites appropriate for dual occupancy and/or unit sites. This information should be then made available to prospective purchasers.

Some measures to inform prospective purchasers of the potential residential character and form of the area may (but not necessarily limited to) include:

- marketing information (sales brochures, signs)
- notations on plans, titles, etc

In determining a reasonable proportion of identified sites for dual occupancy or residential units, consideration should be given to the changing social characteristics outlined in the above section relating to lot sizes.

These provisions do not prevent subsequent proposals being considered for dual occupancies or residential units as otherwise permitted by LEP 2000 and this plan on non-identified sites but such proposals may expect to be the subject to community issues. It is therefore recommended that proposals for dual occupancies and residential units on non-identified sites be discussed with adjoining landowners prior to making a development application.

## SUBDIVISION LAYOUT

The Department of Urban Affairs and Planning's Urban Design Advisory Service publication on *Urban Form* describes the influences on, and effects of, the urban pattern of Orange as a Case Study.

Department of Urban Affairs and Planning's *Urban Form* concludes that :

> *"... the city is well contained within a multiple of the original square mile grid and no significant subdivision has occurred along the roads into town. Some subdivisions have occurred at the edges of the city, with curvilinear streets and culs-de-sac. Nearer the city there are very small blocks, shallow with a relatively wide frontage, which express the current fashion where a wide street address is more important than a big backyard".*

The *Urban Form* publication identifies the following issues for future development of the city:

- *The square grid of 200 m blocks and the open space system along the creek lines are the most important features of Orange's urban identity.*

- *Maintaining this pattern in new development will allow uninterrupted view lines, and offer variety as the streets traverse the topography. It will also result in the efficient provision of services and permeable pedestrian routes.*

- *Expanding open space along natural creek lines and in associated parks will increase amenity, provide environmental buffer zones, allow for drainage control structures and help people orient themselves by being able to read the landscape.*

- *Laneways that have been introduced through the original blocks as culs-de-sac can be extended to give pedestrian or vehicular access across the blocks.*

- *As the town grows, radial expansion will require cross connections to assist the movement between outer suburbs.*

- *The distribution of facilities such as schools and places of worship in existing development suggest similar distribution will be required near new residential development, ie, within a five- to ten-minute walking distance from every home.*

The return to a modified grid layout in preference to 1970s urban-planning theories of curvilinear streets and associated cul-de-sacs has become more recently promoted in the City, such as in the layout for Ploughmans Valley. This principle will continue to be emphasised for the planning for new release areas.

A modified grid layout not only provides for more efficient servicing of residential land, views and improved connections between residential areas, the grid pattern is also consistent with energy-efficiency principles. Orientation of boundaries along north-south and east-west axes encourages solar design of houses. Lots facing east or west need to be wider to promote northern sunlight.

For information on designing subdivisions for energy efficiency refer to Council's *Energy Smart Homes Code.*

| PO 7.2-1 PLANNING OUTCOMES FOR URBAN RESIDENTIAL SUBDIVISION | |
|---|---|
| 1 | Subdivision layouts in areas zoned Urban Residential prior to this plan are generally in accordance with the applicable plan maps in Appendix 1. |
| 2 | Lots are orientated to optimise energy-efficiency principles. |
| 3 | New roads are planned according to modified grid layouts with restrained use of cul-de-sac roads in new developments according to the UDAS *Urban Form* principles for Orange. |
| 4 | Local open space is provided along creek corridors to create open space linkages for environmental conservation and social interaction. Release areas removed from creeks provide for open-space links incorporating substantial stands of native vegetation. |
| 5 | Release areas indicate trunk cycle and pedestrian ways that link the area to major open space networks and activity centres (schools, shopping centres and employment areas). |
| 6 | Lots below 500m$^2$ indicate a mandatory side setback to provide for solar access and privacy. |
| 7 | Lots below 350m$^2$ indicate existing or planned house layouts, which identify how privacy, solar access, vehicular access and private open-space needs are to be achieved. |
| 8 | Up to 25% of new subdivisions comprise small lots in dispersed locations. |
| 9 | Lots are fully serviced and have direct frontage/access to a public road. |
| 10 | Design and construction complies with the Orange Development and Subdivision Code. |

| PO 7.2-1 PLANNING OUTCOMES FOR URBAN RESIDENTIAL SUBDIVISION | |
|---|---|
| 11 | Corner lots provide for a house to front one street. |
| 12 | Battleaxe lots provide an adequate accessway width for the number of dwellings proposed to be served in order to allow for vehicle and pedestrian access and location of services. |
| 13 | Lots proposed to be used specifically for dual occupancy or units in new residential areas are identified on development application plans to inform prospective purchasers of the mixed residential form of the area and measures are outlined on how prospective residents are to be informed of these identified sites prior to purchasing land. |

## SUBDIVISION IN PLOUGHMANS VALLEY

Ploughmans Valley comprises those lands situated to the west of Ploughmans Lane/the Distributor Road and the east of the ridgeline, between the railway line in the south and Murphy Lane in the north.

*Orange Urban Release Strategy - Ploughmans Valley* (Hassell 1997) (the Ploughmans Valley Masterplan) was commissioned by Council in 1997 to investigate the urban release of the western slopes of Ploughmans Valley. The Urban Release Strategy / Masterplan identified an indicative road and allotment layout for the following development areas:

Area 1 - comprising lands bounded by Murphy Lane to the north, Distributor Road/Molong Road to the east, Manning Road to the south and Gorman Road to the west.

Area 2 - comprising lands bounded by Manning Road to the north, Distributor Road to the east, Forbes Road to the south and the ridgeline/Gorman Road to the west.

Area 3 - comprising lands bounded by Forbes Road to the north, Ploughmans Lane to the east, Cargo Road to the south and the ridgeline to the west.

Area 4 - comprising lands bounded by Cargo Road to the north, Ploughmans Lane to the east, the railway line to the south and the ridgeline to the west.

The Masterplan was based on the following principles:

- The dominant ridgelines to the west of the Valley should be protected,
- The landuse patterns and road layout should complement the physical attributes and landform,
- The rural-residential character of the valley should be maintained, with transitional development between rural and residential lands, and
- Open-space linkages should observe existing drainage patterns to enhance creekline habitat.

Based on the recommendations of the Urban Release Strategy/Masterplan, Areas 2-4 were zoned 2(d) Urban Transition and part 5 Distributor Road, while Area 1 was zoned 1(c) Rural Residential under Orange Local Environmental Plan 2000. Areas 2-4 were subsequently rezoned to 2(a) Urban Residential under Orange LEP 2000 (Amendment Nos 1, 2 and 3). Area 1 retains the 1(c) Rural Residential zoning, with this land flagged for future urban release as required.

Due to ongoing development of the Valley, a revised Conceptual Subdivision Layout incorporating the principles of the original Masterplan has been prepared. The Conceptual Subdivision Layout for Ploughmans Valley is attached at Appendix 16.7.

## PO 7.2-2 PLANNING OUTCOMES - RESIDENTIAL SUBDIVISION IN PLOUGHMANS VALLEY

1 The allotment layout is generally in accordance with the Conceptual Subdivision Layout at Appendix 16.7.

2 Subdivision design and construction complies with the Orange City Development and Subdivision Code.

3 The allotment layout provides for transitional development of the Valley:

- in Areas 2, 3 and 4, lots along Forbes Road and Cargo Road have a minimum area of 2,000m$^2$;
- in Area 2, lots adjoining land zoned 1(c) Rural Residential have a minimum area of 1,500m$^2$;
- in Area 3, lots adjoining land zoned 1(a) General Farming and comprising parent parcels Lots 19, 20 and 23 DP 791830 have a minimum area of 1ha;
- in Area 3, lots to the west of Gartrell Way and comprising parent parcels Lot 18 DP 791830 and Lots 21-22 DP 791830 have a minimum area of 2,000m² generally in accordance with the conceptual subdivision layout at Appendix 16.7;
- in Area 3, lots to the west of Gartrell Way and comprising parent parcels Lots 35-36 DP 845425 have a mix of allotment sizes between 2000m² and 4000m² generally in accordance with the conceptual subdivision layout at Appendix 16.7;
- in Area 4, lots adjoining land zoned 7 Water Supply Catchment have a minimum area of 1,500m$^2$. Those parcels zoned part 2(a) Urban Residential and part 7 Water Supply Catchment identify a building envelope wholly contained within land zoned 2(a) Urban Residential.

4 The allotment layout provides a high standard of residential amenity:

- in Areas 2, 3 and 4, lots have a minimum allotment size of 850m$^2$;
- in Area 2, lots adjoining the Distributor Road alignment have a minimum area of 2,000m$^2$ and minimum frontage of 30m;
- in Area 4, lots adjoining the railway line have a minimum area of 1,500m$^2$.

5 The allotment layout maximises energy-efficiency principles. Where practicable, lots are rectangular rather than splay shaped and oriented to provide the long axis within the range N20$^0$W to N30$^0$E or E20$^0$N to E30$^0$S.

6 Subdivision design retains significant landscape features and minimises disturbance to natural vegetation, landform and overland-flow paths.

7 The road layout comprises a modified grid layout with restrained use of cul-de-sacs, generally in accordance with the Conceptual Subdivision Layout.

8 Future road connections to adjoining land are provided and located generally in accordance with the Conceptual Subdivision Layout.

9 Local collector roads connect to Cargo Road, Forbes Road and Ploughmans Lane generally in accordance with the locations shown on the Conceptual Subdivision Layout.

10 Lots have direct frontage or access to a public road.

11 Lots adjoining the Distributor Road alignment do not have frontage or access to the Distributor Road. Access to lots is via internal streets.

| PO 7.2-2 PLANNING OUTCOMES - RESIDENTIAL SUBDIVISION IN PLOUGHMANS VALLEY | |
|---|---|
| 12 | Stormwater runoff from the site is consistent with pre-development stormwater patterns. |
| 13 | Drainage systems are designed to consider catchment and downstream capacities, on-site retention and reuse and overland-flow paths. |
| 14 | All utility services are provided to the proposed lots. |
| 15 | Public open-space linkages are provided across the subdivision. Approximately 1ha of public open spaces for each development area is provided in the form of local parks, drainage paths and creek corridors. Public open space provides opportunities for passive and active recreation. |
| 16 | Allotments intended for dual occupancies are identified on development application plans. Dual occupancy lots range in area between 1,200m² and 1,450m². |
| 17 | Development proposals shall demonstrate the appropriate retention of existing trees in order to protect the visual backdrop of the City. |
| 18 | Dual occupancy development within Ploughmans Valley may be subdivided, upon completion of building works, to create two separate allotments with areas less than 850m$^2$. |

## SUBDIVISION IN NORTH ORANGE - WARATAH

The North Orange-Waratah precinct comprises those lands situated to the north of Farrell Road and the Northern Distributor Road and south of Beer Road, between Clergate Road in the east and Burrendong Way in the west.

The Orange Sustainable Settlement Strategy (Parsons Brinckerhoff 2004) identified that the next front for urban expansion of the City should be on land to the north of the existing urban area. This finding was consistent with various planning studies that have supported the use of the northern land for urban purposes since the 1970s. The land was rezoned in November 2005 from 2(d) Urban Transition to 2(a) Urban Residential pursuant to Orange Local Environmental Plan 2000 (Amendment No 4).

The pattern of residential development in North Orange-Waratah will be determined by the physical attributes of the land and existing and adjoining landuses. The land is traversed by a north-south ridgeline towards the west and contains pockets of remnant vegetation; the terrain generally falls to the south-east, with slope in some areas exceeding 15%. Existing landuses comprise rural/rural residential, with grazing and viticulture activities and associated dwelling houses; Waratah Sportsground and buildings are situated in the centre of the land. The Northern Distributor Road forms the part-southern boundary of the land, with industrial land adjoining to the east. Rural-residential lots and general farming land are located to the north.

A masterplan for North Orange-Waratah is attached at Appendix 16.6. The defined road and allotment layout protects landscape features (natural vegetation, landform and overland-flow paths), provides buffers between inconsistent adjoining landuses (viticulture activities, industrial land, the Northern Distributor Road, general farming land) and provides a high standard of residential amenity for future dwellings.

## PO 7.2-3 PLANNING OUTCOMES FOR SUBDIVISION IN NORTH ORANGE-WARATAH

1 The subdivision layout is generally in accordance with the Conceptual Subdivision Layout (Appendix 16.6).

2 Subdivision design and construction complies with the Orange City Development and Subdivision Code.

3 Lots are oriented to maximise energy-efficiency principles. Where practicable, lots are rectangular rather than splay shaped and oriented to provide the long axis within the range $N20^0W$ to $N30^0E$ or $E20^0N$ to $E30^0S$.

4 Lots adjoining Farrell Road and industrial lands in Clergate Road and Ralston Drive have a minimum area of $2,000m^2$.

5 Battleaxe lots have a minimum area of $650m^2$,excluding the access handle. Access handles have a minimum width of 4.5m incorporating a 3m- wide driveway.

6 Local collector roads connect to the Northern Distributor Road, Clergate Road and Farrell Road generally at the locations shown on the Conceptual Subdivision Layout. Future road connections to adjoining land are located generally in accordance with the Conceptual Subdivision Layout.

7 Residential lots have direct frontage and access to a public road. Access is not available to the Northern Distributor Road and Clergate Road for adjoining lots.

8 Footpath cycleways (4.5m wide) are provided in the locations shown on the Conceptual Subdivision Layout.

9 A pedestrian overpass over the Northern Distributor Road is provided in the vicinity of the proposed Catholic school site (ie, Lot 2 DP 1074558).

10 Hard and soft landscape treatment is provided at the intersection of collector roads with the Northern Distributor Road, Farrell Road and Clergate Road.

11 On-site stormwater detention basins and drainage reserves are provided.

12 All utility services are provided to the proposed lots. The capacity for sewer reticulation to lots to the west of the ridgeline is investigated at development application stage.

13 Significant landscape features are retained and disturbance to natural vegetation, landform and overland-flow paths is minimised.

14 Public open-space areas are sited in accordance with the Conceptual Subdivision Layout. Public open-space contains significant trees/tree groups, threatened species, populations, ecological communities or their habitats. Public open-space areas incorporate stormwater detention basins where required.

15 An assessment under section 5A of the *Environmental Planning and Assessment Act 1979* is submitted at development-application stage to identify the effect of subdivision on threatened species, ecological communities or their habitats.

16 Building envelopes are identified on lots with trees or tree groups. Building envelopes, roads, drainage and service trenches are sited a minimum 4m from trees and tree groups.

17 Allotments for multi-unit housing are identified on development application plans.

18 Dividing fences erected on the common boundaries between residential lots and Waratah Sportsground comprise 1.8m-high Colorbond in 'Meadow' frames and infill panels. Individual access by gates from lots to the sportsground is not permitted.

| PO 7.2-3 PLANNING OUTCOMES FOR SUBDIVISION IN NORTH ORANGE-WARATAH | |
|---|---|
| 19 | A 15m- wide landscape buffer with a vegetative height of 15-20m is provided adjacent to the eastern boundary of lots adjoining Clergate Road and on the northern boundary of parent parcel Lot 1 DP 833569. |
| 20 | A traffic-noise assessment (potential impacts and attenuation measures) prepared by a qualified acoustic engineer is required for lots adjoining the Northern Distributor Road. Consideration is given to the Noise and Vibration Assessment prepared by Richard Heggie Associates Pty Ltd in support of the EIS for the Northern Distributor Road. |
| 21 | A single allotment buffer is provided between residential lots and Ibis Vineyard. The buffer incorporates a 20m-landscaping screen adjacent to the vineyard with a vegetative height of 15-20m. A landscape plan for the buffer is submitted with the development application for subdivision of adjoining land. |
| 22 | Dwelling construction on lots directly adjoining the vineyard proper will not proceed until development consent is granted for subdivision of the vineyard lands. A Restriction-as-to-User will be created on the title of the adjoining lots, restricting dwelling construction until this time. |

## URBAN TRANSITION ZONE

The objective of LEP Clause 42 is to ensure that subdivision of land in Zone 2(d) is carried out in a manner that facilitates future urban development.

This zone has been established to identify areas that:

1 may be required in the future for residential development; or

2 are located on the urban fringe and comprise serviced large lots (about 4,000m$^2$).

Orange LEP 2000 limits subdivision to either large lots (16 hectares or over to facilitate future rezoning) or excision of existing houses provided that the vacant residue land has sufficient area to facilitate future conversion to urban development.

This zone includes the Girrahween, Bilton Place and “North Ridge Estate” (Ralston Drive, etc), which are large lot subdivisions providing a transition between existing or future urban areas and industrial areas, distributor roads or rural-residential areas.

Serviced large lots (minimum of 4,000m$^2$) are permitted in areas where they are consistent with Council’s servicing strategies and are to be undertaken in accordance with a master plan that demonstrates that the large lots are strategically located and do not reduce future opportunities for the planned urban-residential development. Subdivisions for 4,000m$^2$ large lots must fit in with future urban-residential neighbourhoods planned for the Urban Transition zone, particularly north of the Northern Distributor Road between Molong and Clergate Roads.

| PO 7.2-4 PLANNING OUTCOMES FOR URBAN TRANSITION SUBDIVISION | |
|---|---|
| 1 | Subdivision in areas zoned Urban Transition facilitate efficient future urban-development opportunities within undeveloped areas. |
| 2 | Existing areas (ie, Bilton Place, Girrahween Place and “North Ridge Estate”) are retained as large lot areas. |

| PO 7.2-4 PLANNING OUTCOMES FOR URBAN TRANSITION SUBDIVISION | |
|---|---|
| 3 | Large-lot serviced subdivisions (minimum areas of 4,000m$^2$) are located in discrete areas to provide transitional areas between urban development and rural, industrial or other developments where some land-use incompatibility may result. |
| 4 | Buffers are provided between serviced large lots and other areas such as industrial zones where necessary to reinforce separation between residential and non-residential uses. |

# 7.3 URBAN RESIDENTIAL DEVELOPMENT

Clause 41 of Orange LEP 2000 establishes the need for development in urban areas to address issues of neighbourhood character, amenity, design, traffic generation and parking, privacy and overshadowing, servicing, energy conservation and waste management.

These issues are detailed in the following sections 7.4 to 7.7.

# 7.4 DEFINING NEIGHBOURHOOD CHARACTER

The combination of topography, subdivision layout, private and public landscaping (parks and street trees), building form and design contribute to an area's character.

The Urban Heritage Conservation Areas of Orange have the following characteristics (extracts from the 1986 Orange Heritage Study):

### ORANGE CENTRAL CONSERVATION AREA

*"The area of particular interest in Central Orange generally corresponds to the original 'square mile' town layout ...*

*The houses concentrated in this conservation area, have a high degree of consistency of material and period styles complemented by wide, often tree-lined streets. The area displays a graceful residential environment and highly urban character rarely found in the towns of New South Wales.*

*...This central urban area of Orange displays progressive waves of residential growth from the mid 1800s.*

*There is an important spread of Victorian buildings (especially public and ecclesiastical buildings) and many buildings from the turn of the century with late Victorian and Edwardian features of particular significance because of their concentration and general good condition.*

*Some significant Federation-style houses exist though not extensive in number. The Bungalow style gradually became dominant over the next decade and bungalows of the twenties and thirties make up a major element in the housing stock of this conservation area. Within all these architectural styles there are significant common features. Of these the use of the vernacular buff-brown brick is the most important, but also common is the use of corrugated iron for roofs and the consistent front-verandah element.*

*... A surprising number of front fences and gardens retain their original style and reinforce the identity of the periods".*

(1986 Orange Heritage Study)

The Heritage Study identified that the original large street blocks had begun to be dissected by public laneways by 1891. Even though this process has continued, many street blocks remain without any lane access. As a result, the Heritage Study highlighted that, where demolition of houses resulted from pressure to develop the vacant centre areas of street blocks, the fabric and quality of heritage street character was affected by *creating gaps in the sequence of houses, use of new materials and the change in design concepts of both architecture and landscape*.

## EAST ORANGE CONSERVATION AREA

*"The area of particular conservation interest is centred around the small nucleus of the former Municipal Council Chambers, Post Office and shops of the Dora, Summer and McLachlan Street intersections.*

*... The buildings in East Orange are a diverse mix of mainly modest brick-and-timber houses, terraces and local shops displaying the late Victorian and Edwardian-period styles or the later Bungalow style.*

*A few fine late-Victorian houses remain in William and McLachlan Streets and on the Bathurst Road is the notable, grand two-storey Bowen Terrace of 1876 (classified by the National Trust).*

*There are some timber houses from the turn of the century with original details and colours still evident in Dora Street and Summer Street East.*

*Corner shops are a minor characteristic of the area, with Mackies Store a particularly fine example.*

*The area contrasts in character with the consistency of the period brick houses of the Central Orange Conservation Area"*

(1986 Orange Heritage Study)

## GLENROI CONSERVATION AREA

This area is referred to as the "South East Conservation Area" in the 1986 Orange Heritage Study. The area is situated south of Bathurst Road, centring on parts of McLachlan, Edward, Endsleigh, Kite, Moulder and Warrendine Streets.

*"This area has a notable concentration of mainly brick houses in good condition from the late-Victorian and Edwardian periods as well as a good representation of bungalow housing. The smaller houses and single-storey terraces provide a good example of workers' housing from periods of the town's growth.*

*...Quite a number of these single-storey, symmetrical brick cottages date from the Late Victorian period (1890 – 1900).*

*Near the Bathurst Road are a scattering of very fine turn-of-the century houses, notably "Rhodesia", "Warrenbah", number 162 Edward Street and number 160 Kite Street ...*"

(1986 Orange Heritage Study)

## DESIRED FUTURE NEIGHBOURHOOD CHARACTER

The above statements of significance for conservation areas provide the context for development within residential areas of the urban conservation areas of Orange.

As the *Urban Form* publication indicates, the layout of urban residential areas beyond the limits of the Conservation Areas in Orange alter with different lot sizes, widths and street layouts. Building form remains consistent.

Residential areas predominantly comprise single-storey housing. Narrow-frontage lots with deep backyards in central areas become replaced by wider lots with smaller backyards in the contemporary subdivisions of fringing-release areas.

The single-storey character of residential areas predominates. Retaining this character requires attention in considering two-storey infill development. Contemporary residential areas are anticipated to comprise single-storey houses that face or present to the street. A mix of housing forms on a range of lot sizes will provide for a range of housing needs.

New residential development should complement the existing character of established areas and provide a quality environment in new areas through addressing design elements such as orientation, building form and scale and facade treatment through presenting buildings to the street.

**RELATED INFORMATION – DEFINING NEIGHBOURHOOD CHARACTER**

1 Department of Urban Affairs and Planning (now DIPNR) Urban Design Advisory Service 1998 *Neighbourhood Character: An urban design approach for identifying neighbourhood character.*

2 Department of Urban Affairs and Planning (now DIPNR) Urban Design Advisory Service 1998 *Better Urban Living: Guidelines for urban housing in NSW.*

## 7.5 MERIT-BASED APPROACH TO RESIDENTIAL DEVELOPMENT IN ORANGE

A merit-based (or performance) approach to residential development focuses on achieving planning outcomes rather than prescriptive or numerical (often minimum) standards. In this Plan, numerical standards are mainly used as a guide. For example, lot sizes are outlined to provide for a range of areas. Small lots also provide more challenges for dwelling design. Development contributions are applied to different categories of lots according to size. In some cases, areas and dimensions are still applied to explain how performance can be achieved. Variations to these may be allowed where an application demonstrates to Council's satisfaction that design objectives and principles are achieved.

The merit-based approach to development permits designers to respond to the individual opportunities and constraints of each site. This means that planners and designers can respond more flexibly to local conditions, both in terms of a site's potential and its impact on neighbourhood character (NSW Model Code).

This Plan promotes a comprehensive approach to site planning, design and assessment for urban-residential development. This requires careful analysis of the site's character (opportunities and constraints to development) and the following design elements:

- Streetscape
- Energy Efficiency
- Bulk and Scale
- Privacy and Security
- Site Access and Circulation
- Water and Soil Management
- Open Space and Landscaping
- Site Facilities

Development must be able to demonstrate to Council that it achieves the objectives and planning outcomes for these design elements.

| PO 7.5-1 PLANNING OUTCOMES FOR NEW DWELLINGS | |
|---|---|
| 1 | All residential development demonstrates that the principles and objectives of each design element as outlined in section 7.7 are achieved. |
| 2 | Development applications for multiple-unit development (dual occupancies and residential unit developments) include site analyses and supporting information showing how design-element outcomes have been addressed in the design in accordance with sections 7.6 and 7.7. |
| 3 | Development applications for two-storey houses or houses proposing encroachments within usual setbacks include site analyses and supporting information showing how design-element outcomes have been addressed in the design in accordance with sections 7.6 and 7.7. |

**RELATED INFORMATION – MERIT-BASED APPROACH TO RESIDENTIAL DEVELOPMENT IN ORANGE**

1 Commonwealth Department of Health, Housing and Community Services *AMCORD URBAN*. AGPS Canberra

2 National Office of Local Government *Good Residential Design* AGPS Canberra.

3 NSW Department of Urban Affairs and Planning 1997 *NSW Model Code*.

## 7.6 SITE ANALYSIS

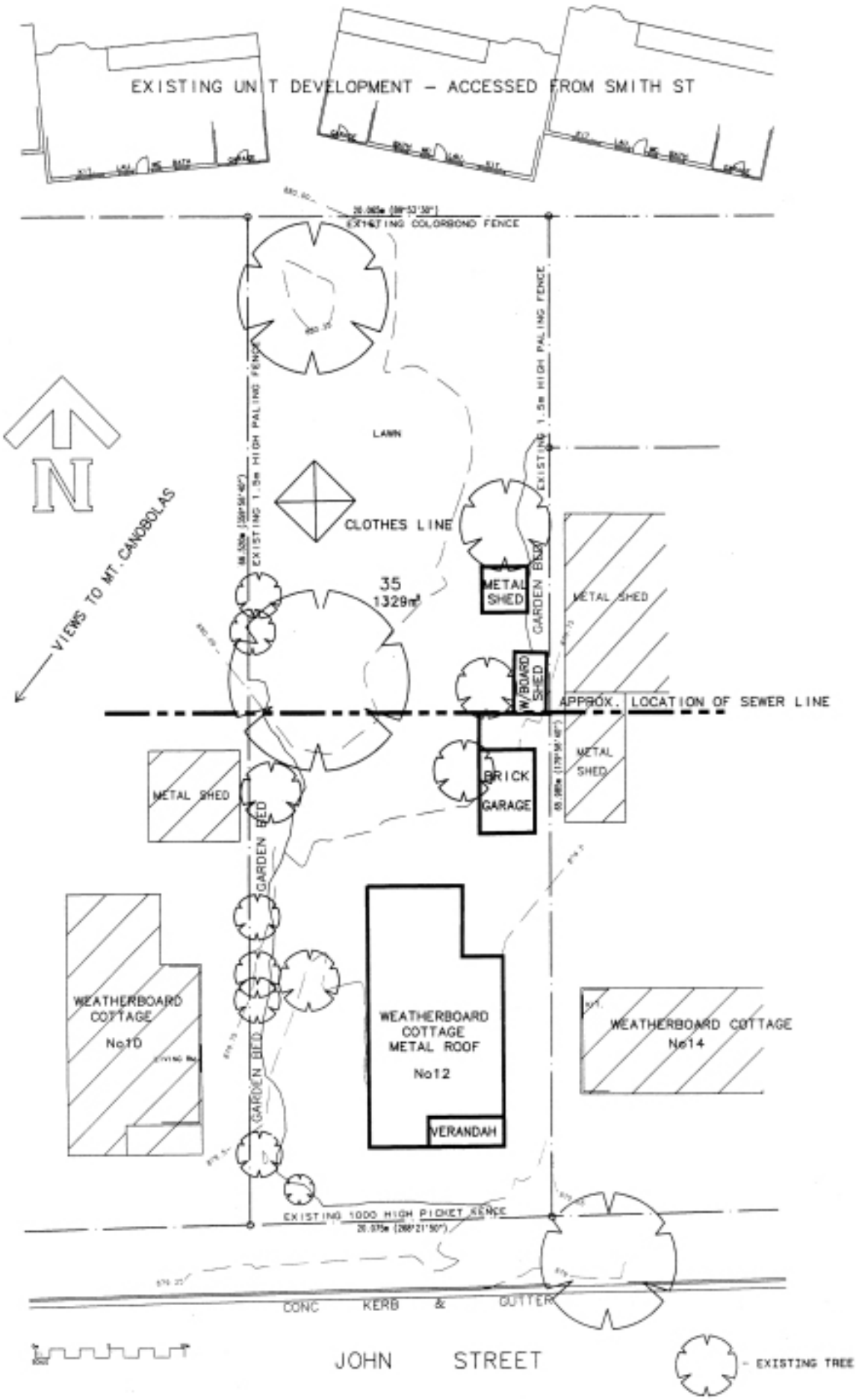
Site analysis identifies the key features (development constraints and opportunities) of the site and its surroundings that influence development. A site analysis should be submitted with applications for all residential development (subdivision and buildings). A site analysis must be submitted with an application to develop:

- more than one dwelling on land (ie, dual occupancy, residential units)
- new buildings in heritage conservation areas
- development on small lots (ie, less than 500m$^2$)
- development of more than one storey in height

To ensure that a design is of high quality and appropriate to its environment, the site analysis provides for site layout and building design that considers the existing characteristics, opportunities and constraints of both the principal site and its surrounds as listed below.

| THE SITE | THE SURROUNDING AREA |
|---|---|
| **Site dimensions**<br>- lot length and width<br>- property boundaries<br>**Topography**<br>- spot levels and/or contours to indicate slope, natural ground levels<br>- north point<br>- natural drainage lines<br>- areas of contaminated soils<br>- existing filled areas<br>**Services**<br>- easements<br>- connections for utility services<br>- (water, sewer, power, telecommunications)<br>**Existing vegetation**<br>- location, height and area covered<br>- species<br>**Micro climate**<br>- orientation<br>- prevailing winds<br>**Location of Buildings, including**<br>- all buildings and structures<br>- fences<br>- heritage features<br>- views to and from the site<br>- overshadowing of neighbouring structures<br>**Access**<br>- existing laybacks, entrances<br>- possible points for vehicular access | **Built Form and character**<br>- predominant architectural character<br>- front fencing and garden styles<br>**Heritage Features**<br>- places identified in the Orange Heritage Study Inventory Sheets<br>**Neighbouring buildings**<br>- location and height<br>- external materials<br>- use<br>**Privacy**<br>- adjoining private open spaces;<br>- adjacent living room windows location of any facing doors or windows<br>**Change in levels**<br>- change in levels between the site and adjacent properties<br>**Street Features**<br>- footpath widths<br>- location of laybacks<br>- street trees<br>- poles and location of other services<br>**Direction and distance to local facilities**<br>- public open space<br>- schools<br>- shops<br>- public transport (ie, bus routes)<br>**Adjacent Land Features**<br>- bushland, rural land, major trees in the vicinity<br>- waterways |

See also King, Rudder, Prasad and Ballinger (1996) *Site Planning in Australia*, AGPS, Canberra




*Site Analysis Example*

# 7.7 DESIGN ELEMENTS FOR RESIDENTIAL DEVELOPMENT STREETSCAPE

## OBJECTIVES

1 To ensure that the development fits into its setting and environmental features of the locality;

2 To ensure that the appearance of housing is of a high visual quality, enhances the streetscape and complements good quality surrounding development;

3 To ensure that new development complements places with heritage significance and their settings in a contemporary way.

4 To develop a sense of place with attractive street frontages

5 To encourage visually appealing cohesive streetscapes

6 To create a safe and secure environment

7 To provide consistent design elements that protect private investment

| PO 7.7-1 PLANNING OUTCOMES - NEIGHBOURHOOD CHARACTER |
|---|
| 1 Site layout and building design enables the:<br>- creation of attractive residential environments with clear character and identity;<br>- use of site features such as views, aspect, existing vegetation and landmarks.<br>2 Buildings are designed to complement the relevant features and built form that are identified as part of the desired neighbourhood character.<br>3 The streetscape is designed to encourage pedestrian access and use. |
| **GUIDELINES**<br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |
| a The application includes information that clearly indicates how the proposed design responds to the site analysis and considers neighbourhood character. |

| PO 7.7-2 PLANNING OUTCOMES – BUILDING APPEARANCE |
|---|
| 1 The building design, detailing and finishes relate to the desired neighbourhood character, complement the residential scale of the area and add visual interest to the street.<br>2 The frontage of buildings and their entries address the street.<br>3 Garages and car parks are sited and designed so that they do not dominate the street frontage. |
| **GUIDELINES**<br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |

## PO 7.7-2 PLANNING OUTCOMES – BUILDING APPEARANCE

a Dwellings facing public streets or internal accessways have:

- a front door and living room window facing that street or accessway, to provide for surveillance;
- the difference in building height between existing buildings and the new development appearing to be no more than one storey when viewed from the street (except for heritage conservation areas where the building height appears to be single storey from the street);
- building design, roof form and detailing that complements neighbourhood character;
- the building façade to the public street including relief features (verandahs, windows, balconies, wall offsets) and relating to the dimensions of the other houses in the street, particularly in heritage conservation areas;
- variation in materials, detailing, form, façade lines and relief and provide for individual designs for dwellings that complement the setting within a consistent neighbourhood theme.

b New development complements or enhances the desired neighbourhood character by:

- providing sufficient space for planting trees and providing gardens in setback areas;
- retaining and protecting existing vegetation, where possible.

c Carports and garages facing the public street:

- are integrated to the building design;
- have a maximum overall width of up to 50% of the total frontage of the dwelling.

## PO 7.7-3 PLANNING OUTCOMES – HERITAGE

1 Heritage buildings and structures are efficiently re-used.

2 New development complements and enhances the significance of a heritage item or place of heritage significance listed in the Orange Heritage Study.

3 Significant landscape features are retained including original period fences and period gardens.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a A Statement of Heritage Significance outlines the impact of the proposed development on the heritage item.

b Ancillary buildings such as garages, carports and garden sheds are located to the rear or set back further from the street frontage than the heritage building.

c Building form, massing, roof shapes, pitch, height and setbacks are consistent with nearby buildings of heritage significance (NB buildings of heritage significance include buildings listed as heritage items in schedule 8 of LEP 2000 and/or buildings listed in inventory sheets in the Orange Heritage Study).

d Any significant heritage features – including mature trees, retaining walls, fences or kerbstones – are retained.

e Period fences and gardens are established/reinstated in heritage settings.

**NOTE** In heritage settings these criteria override other criteria in this Plan.

## PO 7.7-4 PLANNING OUTCOMES – SETBACKS

1 Street setbacks contribute to the desired neighbourhood character, assist with integration of new development and make efficient use of the site.

2 Street setbacks create an appropriate scale for the street considering all other streetscape components.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

**General**

a Building setbacks from the public street:

- are generally consistent with those of adjoining developments;
- provide a front garden area;
- relate to the width of the street and footpaths to provide quality urban environment.

b In new residential areas (areas where there are many newly created vacant lots and houses built in recent years) a 4.5m setback applies or as otherwise defined for specific roads.

c In established areas (infill) the setback shall be up to the front building line of the residential part of a building on adjoining (but not adjacent) land.

d In addition to the setback requirements detailed above, a 2m secondary setback applies to corner allotments.

e A 9-metre front setback applies from the street frontage for main or defined arterial roads.

f A 15-metre setback applies for dwellings with a rear or side boundary adjoining a distributor road.

g Garages shall be setback 1.5m behind the building line as established above, or at least 5.5m which ever is the greater distance. This distance applies to entrances off a secondary boundary on corner allotments.

h Garages are set behind the building façade, or project up to 3m (half the normal depth of a garage) in front of the main façade.

i Garages can project further towards the street frontage than as stated in point h above on irregular-shaped lots where the width of the lot is 15m or less at the building line.

j For three or more garages, the garage openings must be set back at least 8m from the front building alignment.

k Within heritage areas, garages shall be located behind the existing building line.

**Ploughmans Valley**

l A 6m setback applies to local service roads in Ploughmans Valley. A local service road is defined as a road with a road-reserve width of 22m and includes Jonathon Road, Witton Place, Stirling Avenue, Yackerboon Place, Isaac Drive, Carwoola Drive, Borrodell Drive and Gartrell Way.

m A 15m setback applies from the street frontage for lots along Forbes Road and Cargo Road. The setback will be landscaped with trees and understorey shrubs to provide a landscape-entry-avenue character.

n A 50m setback applies from the centreline of the Northern Distributor Road.

o A 8m setback applies from the street frontage for lots along Ploughmans Lane.

**Local Roads**

p Variations to front setbacks will be considered on local roads where the neighbourhood character differs significantly from the above setbacks.

| PO 7.7-5 PLANNING OUTCOMES – FENCES AND WALLS |
|---|
| 1 Front fences and walls:<br>- assist in highlighting entrances and creating a sense of identity within the streetscape.<br>- are constructed of materials compatible with associated housing and with fences visible from the site that positively contribute to the streetscape<br>- provide for facilities in the street frontage area such as mail boxes. |
| **GUIDELINES**<br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |
| a Front fences and walls:<br>- have a maximum height of 1.2 metres.<br>b Front fences and walls are designed to use similar or compatible materials used in the locality to positively contribute to the streetscape.<br>c Front fences in Ploughmans Valley are an open-picket style. Fencing is integrated with a variety of plantings.<br>d Colorbond, timber, masonry or similar solid fencing is not erected on Forbes and Cargo Roads forward of the 15m front dwelling setback.<br>e Side fences on corner lots fronting a street:<br>- have a maximum height of 1.8 metres behind the front building line of the dwelling;<br>- use similar or compatible materials used in the locality to positively contribute to the streetscape. In heritage areas timber paling fences are preferred for side fences on corner lots fronting a street.<br>f Side fences on corner lots in Ploughmans Valley do not comprise Colorbond panels. |

## ENERGY EFFICIENCY

Council's *Energy Smart Homes Code* is deemed to form part of this DCP. The *Energy Smart Homes Code* endeavours to optimise naturally comfortable housing with reduced energy consumption. This approach maximises environmental benefits and minimises energy costs for residents.

The *Energy Smart Homes* principles include consideration of the following design elements:

### Solar design

- site analysis
- building orientation
- solar access guidelines
- windows are appropriately sized to control entry and escape of heat
- windows and walls are shaded to minimise heat gain in summer
- dwelling design maximises availability of natural light

### Thermal design

- wall and ceiling insulation is provided in accordance with AS2627
- external-material colours and textures contribute to solar efficiency
- use of thermal mass in building materials to optimise thermal comfort

- ventilation openings (doors, windows or other devices) capable of achieving cross ventilation and/or removal of warm air in summer
- dwelling design to minimise infiltration of cold air (draughts) in winter

### Landscaping

- landscaping design to contribute towards energy efficiency

### Heating systems

- dwelling design minimises energy consumption in space heating and cooling
- hot-water systems installed with a Greenhouse Score of 3.5 stars or more

**RELATED INFORMATION – ENERGY EFFICIENCY**

Information on the Sustainable Energy Development Authority's programs can be found on the website: http://www.seda.nsw.gov.au/

**OTHER ENERGY-RELATED WEBSITES**

www.energysmart.com.au

www.energyrating.gov.au

www.greenhouse.gov.au

www.hmb.net.au

## BULK AND SCALE

### Objectives

1 To allow flexibility in siting buildings and to ensure that the bulk and scale of new development reasonably protects the amenity of neighbouring properties and maintains appropriate neighbourhood character.

2 To allow adequate daylight, sunlight and ventilation to living areas and private open spaces of new and neighbouring developments.

3 To encourage the sharing of views, while considering the reasonable development of the site.

| PO 7.7-6 PLANNING OUTCOMES – VISUAL BULK | |
|---|---|
| 1 | Built form accords with the desired neighbourhood character of the area with:<br>- side and rear setbacks progressively increased to reduce bulk and overshadowing;<br>- site coverage that retains the relatively low-density, landscaped character of residential areas;<br>- building form and siting that relates to land form, with minimal land shaping (cut and fill);<br>- building height at the street frontage that maintains a comparable scale with the predominant adjacent development form;<br>- building to the boundary where appropriate. |

## PO 7.7-6 PLANNING OUTCOMES – VISUAL BULK

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a Buildings are contained within an envelope generated by planes projected at 45° over the site commencing 2.5m above existing ground level from each side and rear boundary.

b Buildings within 15 metres of the street frontage, in areas of predominantly single-storey houses, are or appear as single storey.

c Buildings may cover up to 50% of the site area (except for single dwellings which may cover up to 60% including outbuildings).

## PO 7.7-7 PLANNING OUTCOMES - WALLS AND BOUNDARIES

1 Building to the boundary is undertaken to provide for efficient use of the site taking, into account:

- the privacy of neighbouring dwellings and private open space;
- the access to daylight reaching adjoining properties;
- the impact of boundary walls on neighbours.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a There is a side boundary setback of at least 900mm minimum for walls in accordance with the above building envelope planes (unless the wall has been built on the boundary). Eaves and other projections may encroach within this area.

b Adequately fire-rated walls without windows or other openings may be erected on or adjacent to boundaries subject to no projections encroaching on adjoining land. The length of a wall within 900mm of the boundary is a maximum of 15 metres or 50% of the side boundary length, whichever is less.

c Encroachments within the setback demonstrate that privacy and overshadowing will not affect adjoining land. Council requires evidence that the adjoining owner does not object to the positioning of the building on or near the boundary.

d The position of buildings in relation to boundaries addresses existing trees and landscaping that contribute to the amenity of the locality.

## PO 7.7-8 PLANNING OUTCOMES - DAYLIGHT AND SUNLIGHT

1 Buildings are sited and designed to ensure:

- daylight to habitable rooms in adjacent dwellings is not significantly reduced;
- overshadowing of neighbouring secluded open spaces or main living-area windows is not significantly increased;
- consideration of Council's Energy Efficiency Code.

## PO 7.7-8 PLANNING OUTCOMES - DAYLIGHT AND SUNLIGHT

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a Habitable rooms include windows that are:

- facing private open space, courtyard, verandah, patio or the like, open to the sky;
- at least 1.8 metres from any adjoining building.

b Sunlight to at least 40% of the main area of private open space (on ground level) within the development and on adjoining land:

- is not reduced to less than 3 hours between 9:00 and 3:00 pm on 21 June; or
- is not further reduced where existing overshadowing is greater than the above points.

c Sunlight to at least 75% of north-facing living-area windows within the development and on adjoining land:

- is provided for a minimum of 4 hours on 21 June; or
- is not further reduced than existing where already less.

***refer to Energy Smart Homes code***

## PO 7.7-9 PLANNING OUTCOMES - VIEWS

1 Building form and design allow for residents from adjacent properties to share prominent views where possible.

2 Views including vistas of heritage items or landmarks, are not substantially affected by the bulk and scale of new development.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a When views are identified from site analysis, the application demonstrates how those views are reasonably shared between the new development and adjacent premises.

**NOTE** In Orange, views to Mount Canobolas are highly valued. Living areas require special treatment to achieve northern solar access and optimise the south-western views. Other prized views are the Suma Park and Mount Bulga views to the east, the framing hills north of Clifton Grove and the Mullion Ranges to the north as viewed from the western ridge of Ploughmans Valley.

## PRIVACY AND SECURITY

### Objectives

To ensure that the siting and design of buildings provide privacy for residents and neighbours in their dwellings and principal private open space.

**NOTE** Visual privacy is not usually affected by single-storey construction unless a building located towards the rear of the land is relatively higher than adjacent land and buildings. The most significant effect to privacy will be by more intense (two-storey) development to the rear of lots, requiring attention to privacy measures.

## PO 7.7-10 PLANNING OUTCOMES – VISUAL PRIVACY

1 Direct overlooking of principal living areas and private open spaces of other dwellings is minimised firstly by:

- building siting and layout;
- location of windows and balconies;

and secondly by:

- design of windows or use of screening devices and landscaping.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a Site and building layout ensures windows do not provide direct and close views into the windows, balconies or private open spaces of adjoining dwellings.

b Habitable room windows on upper-floor levels (ie, floor level greater than 1.5 metres above pre-development ground level) within 9 metres from windows of living areas of adjacent dwellings:

- are off-set sufficient distance to limit direct views; or
- include measures to screen or obscure views between the dwellings (curtains are not sufficient for screening).

c Balconies of an upper-floor level (as defined above) within 9 metres of habitable rooms or private open space are permanently screened to reasonably obscure direct views to adjacent rooms and private open space.

## PO 7.7-11 PLANNING OUTCOMES - ACOUSTIC PRIVACY

1 Site layout and building design:

- protect habitable rooms from excessively high levels of external noise;
- minimise the entry of external noise to private open space for dwellings close to major noise sources;
- minimise transmission of sound through a building to affect other dwellings.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a Site layout separates active communal recreation areas, parking areas, access-ways and service-equipment areas from bedrooms.

b Shared walls and floors between dwellings are constructed in accordance with the noise transmission and insulation requirements of the Building Code of Australia.

c Bedrooms of one dwelling do not adjoin living rooms or garages of adjoining dwellings.

d Dwellings close to high-noise sources (busy roads, railways, major industries, etc) are designed to locate habitable rooms and private open spaces away from the noise source and are protected by appropriate noise-shielding devices according to relevant Australian Standards.

| PO 7.7-12 PLANNING OUTCOMES - SECURITY |
|---|
| 1 The site layout enhances personal safety and minimises the potential for crime, vandalism and fear. |
| 2 The design of dwellings enables residents to survey streets, communal areas and approaches to dwelling entrances. |
| **GUIDELINES**<br><br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |
| a Applications for multi-unit development include a crime-risk assessment and demonstrate that the principles of "Crime Prevention Through Environmental Design" (CPTED) are achieved. |
| b Buildings adjacent to public streets, spaces or communal areas are designed to allow casual surveillance and should have at least one habitable-room window facing that area. |
| c Shared entrances for multi-unit buildings are able to be locked and serve a limited number of dwellings. Consideration should be given to security systems for access into multi-unit buildings. |

**RELATED SITES – SAFER BY DESIGN FOR RESIDENTIAL SECURITY**

NSW Police Safer by Design Site

Planning Guidelines for Safer by Design

## SITE ACCESS AND CIRCULATION

### Objectives

1 To provide convenient and safe access and parking that meets the needs of all residents and visitors.

2 To encourage the integrated design of access and parking facilities to minimise visual and environmental impacts.

| PO 7.7-13 PLANNING OUTCOMES - PUBLIC TRANSPORT |
|---|
| 1 Residential unit development is accessible to public transport. |
| **GUIDELINES**<br><br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |
| a Multi-unit developments are located adjacent to public bus routes. |

| PO 7.7-14 PLANNING OUTCOMES – CIRCULATION DESIGN |
|---|
| 1 Accessways and parking areas are designed to manage stormwater. |
| 2 Accessways, driveways and open parking areas are suitably landscaped to enhance amenity while providing security and accessibility to residents and visitors. |

## PO 7.7-14 PLANNING OUTCOMES – CIRCULATION DESIGN

3 The site layout allows people with a disability to travel to and within the site between car parks, buildings and communal open space.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a Accessways and driveways:

- are designed to enable vehicles to enter a garage in a single turning movement and leave in no more than two turning movements;
- provide a free-standing car-parking space according to this Development Control Plan;
- comply with AS 1428.1 – 1993 Design for access and mobility.

b Driveways are designed to allow cars to enter and leave the site without reversing onto the street for:

- dwelling houses on a busy street (main or arterial road and major collector roads); or
- the site provides access to more than two dwellings.

c Driveways have sufficient width to provide for cars to pass where there are more than 3 dwellings within the site.

d Driveways shall have a maximum width of 6 metres for laybacks and driveways where they cross the public footpath.

e Driveways shall be located at least 6 metres from the boundary line at an intersection (preferably nearest to the boundary furthest from the intersection).

**NOTE** For a single garage a minimum of 7 metres is required for manoeuvring. A minimum 6.7-metre-wide manoeuvring area is necessary for double garages or open parking spaces.

## PO 7.7-15 PLANNING OUTCOMES - CAR PARKING

1 Parking facilities are provided, designed and located to:

- enable the efficient and convenient use of car spaces and accessways within the site;
- reduce the visual dominance of car-parking areas and accessways.

2 Car parking is provided with regard to the:

- number and size of proposed dwellings;
- requirements of people with limited mobility or disabilities.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

| PO 7.7-15 PLANNING OUTCOMES - CAR PARKING |
|---|
| a Car parking is provided according to Part 15 of the Development Control Plan. |
| b Car parking is provided after consideration of other design elements to ensure that access and parking fits into the design and landscaping of the development. |
| c Resident car parking is provided according to the following table subject to:<br>- open parking areas being situated no closer to the street than the rear building line of the dwelling nearest the street;<br>- each dwelling having at least one undercover parking space in close proximity to the dwelling;<br>- additional spaces associated with dwellings may be provided in front of the undercover parking space (in “tandem”) provided that this does not obstruct accessways. |
| d Visitor car parking is provided according to the following table, subject to:<br>- visitor parking being provided within the site unless the site has frontage to a local road with a carriage width of at least 11 metres and has sufficient frontage to accommodate the required number of visitor car spaces for the development. |

## CAR PARKING TABLE

| DWELLING SIZE OR NUMBER OF BEDROOMS | AVERAGE CAR PARKING PER DWELLING |
|---|---|
| Small (<75m$^2$) or 1-bedroom unit | 1.0 spaces per unit |
| Medium (75m$^2$ – 110m$^2$) or 2-bedroom unit | 1.2 spaces per unit |
| Large (>110m$^2$) or 3+ -bedroom unit | 1.5 spaces per unit |
| Visitor Parking | 0.2 spaces per unit |

## OPEN SPACE AND LANDSCAPING

### Objectives

1 To provide convenient and safe access and parking that meets the needs of all residents and visitors.

2 To encourage the integrated design of access and parking facilities to minimise visual and environmental impacts.

| PO 7.7-16 PLANNING OUTCOMES – PRIVATE OPEN SPACE |
|---|
| 1 Private open space is clearly defined for private use. |
| 2 Private open space areas are of a size, shape and slope to suit the reasonable requirements of residents, including some outdoor recreational needs and service functions. |

## PO 7.7-16 PLANNING OUTCOMES – PRIVATE OPEN SPACE

3 Private open space is:

- capable of being an extension of the dwelling for outdoor living, entertainment and recreation;
- accessible from a living area of the dwelling;
- located to take advantage of outlooks and to reduce adverse impacts of overshadowing or privacy from adjoining buildings;
- orientated to optimise year-round use.

**GUIDELINES**

*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.*

a Private open space at ground level has:

- a useable area of at least equivalent to 50% of the dwelling floor space (gross) with a minimum dimension of 3m and including:
- at least one area with minimum dimensions of 5m by 5m directly accessible to a living area, preferably orientated to the north or east of the dwelling.

b Private open space for each dwelling located above the ground is in the form of a balcony or roof terrace with:

- convenient access from the main living area;
- a minimum area of $8m^2$ and a minimum dimension of 2m;
- appropriate solar access/orientation and privacy.

c Open space is:

- located behind the main façade of the dwelling, ie, the primary front wall excluding decorative elements such as porticoes or similar;
- adjacent to dwellings; and
- is allocated to individual units where practicable to minimise the need for management and maintenance of communal open space.

d Communal open space may be appropriate for units above ground level. Communal space is provided at the same rate as for private open space above.

## PO 7.7-17 PLANNING OUTCOMES – OPEN SPACE AND LANDSCAPING

1 The site layout provides open space and landscaped areas which:

- contribute to the character of the development by providing buildings in a landscaped setting;
- provide for a range of uses and activities including stormwater management;
- allow cost-effective management.

2 The landscape design specifies landscape themes consistent with the desired neighbourhood character and vegetation types and location, paving and lighting are provided for access and security.

| PO 7.7-17 PLANNING OUTCOMES – OPEN SPACE AND LANDSCAPING |
|---|
| 3 Major existing trees are retained and protected in a viable condition whenever practicable through appropriate siting of buildings, accessways and parking areas. |
| 4 Paving is applied sparingly and integrated in the landscape design. |
| **GUIDELINES**<br><br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |
| a A landscape plan identifies:<br>- existing vegetation and proposed planting and landscaping (including proposed species);<br>- arrangement of hard landscaping features (paved areas, pathways, walls, etc) and front gardens designed to complement the locality including front fences and period cottage gardens in heritage areas.<br>b At least two thirds of the front yard (setback area) is soft landscaped (gardens, lawns etc) – not paved or sealed. |

## WATER AND SOIL MANAGEMENT

### Objectives

1 To control and minimise the impact of stormwater run-off and soil erosion on adjoining land and down stream.

2 To encourage reduced water wastage by reusing, recycling and harvesting stormwater.

| PO 7.7-18 PLANNING OUTCOMES - STORMWATER |
|---|
| 1 On-site drainage systems are designed to consider:<br>- downstream capacity and the need for on-site stormwater retention, detention and re-use;<br>- scope for on-site infiltration of water;<br>- safety and convenience of pedestrians and vehicles;<br>- overland-flow paths. |
| 2 Provision is made for on-site drainage which does not cause damage or nuisance flows to adjoining properties. |
| **GUIDELINES**<br><br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |

| PO 7.7-18 PLANNING OUTCOMES - STORMWATER |
|---|
| a Site drainage permits:<br>- on-site stormwater retention;<br>- on-site stormwater storage for re-use |
| b Landscape design assists on-site infiltration of stormwater run-off by grading, locating and maximising unpaved or unsealed areas of common areas. |
| c The developer is responsible for gaining access to neighbouring land if required for the purpose of providing drainage services to the land. |
| **NOTE** Water tanks may be exempt development. |

| PO 7.7-19 PLANNING OUTCOMES - EROSION AND SEDIMENT CONTROL |
|---|
| 1 Measures implemented during construction to ensure that the landform is stabilised and erosion is controlled. |
| **GUIDELINES**<br>*These guidelines indicate ways of achieving the planning outcomes. It Is recognised that there may also be other solutions. All design solutions will be considered on merit. Applications should clearly demonstrate how the planning outcomes are being met where alternative design solutions are proposed.* |
| a A Stormwater and Soil Management Plan as required by the *Subdivision and Development Code* demonstrates how sedimentation and erosion of disturbed areas will be managed on the site. |
| b All disturbed areas are re-stabilised and revegetated as soon as practicable during development. |

**RELATED INFORMATION – DESIGN ELEMENTS FOR RESIDENTIAL DEVELOPMENT STREETSCAPE**

1 National Office of Local Government *Australia's Guide to Good Residential Design*, AGPS, Canberra

2 Department of Urban Affairs and Planning 1997 *NSW Model Code*, NSW Government

3 Department of Urban Affairs and Planning Urban Design Advisory Service 1998 *Better Urban Living*, NSW Government

4 Department of Urban Affairs and Planning Urban Design Advisory Service 1998 *Neighbourhood Character*, NSW Government

5 Department of Urban Affairs and Planning Urban Design Advisory Service *1998 Residential Densities*, NSW Government

6 Department of Urban Affairs and Planning Urban Design Advisory Service 1998 *Urban Form*, NSW Government

7 *Good Residential Design Guide* - *Your Home* Commonwealth of Australia

8 *State Environmental Planning Policy – Seniors Living*

# 7.8 HEALTH CONSULTING ROOMS

LEP 2000 specifically provides for health consulting rooms in the Urban Residential Zone so that local health professionals can be accessible to residents. That plan also recognised that the location of medical practices adjacent to hospitals in residential areas contributes to the City's role as a regional health and medical centre.

Health consulting rooms should complement the character of the area. Buildings should retain a residential scale and appearance compatible with the locality.

Parking should be provided on site at a rate equivalent to 2 spaces for each professional operating from the premises at any one time. Such spaces should be behind the building line and be provided for staff and clients. Parking areas should be designed and located in a way that does not interfere with the reasonable amenity of adjacent residences.

Front gardens of health consulting rooms should contribute to the residential character of the locality.

Signage should be limited to a single business-identification sign within the front landscaped area or attached to the building façade.




*Photograph – Health Consulting Rooms in a residential setting*

| PO 7.8-1 PLANNING OUTCOMES – HEALTH CONSULTING ROOMS | |
|---|---|
| 1 | The building complements the character of residential development in the vicinity in design features, height and setbacks. |
| 2 | On-site parking is provided at the rate of 2 spaces for each professional operating from the premises at any one time, with such spaces available for use by staff and clients. |
| 3 | Front gardens are established or retained consistent with the garden character of the locality. |
| 4 | A single business-identification sign of a reasonable size is provided within the garden area or attached to the building façade. |

# 7.9 SHOPS AND BUSINESSES IN THE URBAN RESIDENTIAL ZONE

LEP 2000 provides for a range of non-residential activities to be carried out in the Urban Residential zone provided that the development complements the residential character and amenity of the area (Clause 41).

Shops and businesses listed in Schedule 7 of LEP 2000 are permitted in the Urban Residential Zone.

Clause 43(2) of LEP 2000 requires that business premises permitted in residential areas to be located in a neighbourhood-shopping centre. Neighbourhood-shopping areas in the Urban Residential zone previously zoned 3(c) and used for neighbourhood shops under Orange LEP 11 apply for the purposes of clause 43(2) of LEP 2000.

New shops in residential areas to provide for the convenience-shopping needs of residents of the locality should be located within or in association with existing neighbourhood-shopping areas. Neighbourhood-shopping centres should complement the predominantly residential character.




*Photograph - Moulder Street neighbourhood shops*

Shops that benefit from the character of residential areas, particularly heritage areas (such as antique, arts and crafts shops together with plant nurseries and restaurants) should complement the residential character and amenity of the area. The businesses should therefore not reduce resident parking in the vicinity, should not disturb residents (particularly at night) and should include adequate provision for service vehicles within the site.

| PO 7.9-1 PLANNING OUTCOMES - SHOPS AND BUSINESSES IN THE URBAN RESIDENTIAL ZONE | |
|---|---|
| 1 | Development complements the scale of residential development in the area and the predominant heights and form of residential development in the vicinity. |
| 2 | Business premises are located in neighbourhood business areas, existing prior to Orange LEP 2000. |

| PO 7.9-1 PLANNING OUTCOMES - SHOPS AND BUSINESSES IN THE URBAN RESIDENTIAL ZONE | |
|---|---|
| 3 | Development applications satisfactorily demonstrate that the development will not adversely affect the amenity of the residential locality as a consequence of the nature of the business, loading or unloading requirements, on-street parking, hours of operation, etc. |
| 4 | Neighbourhood-business centres are small scale to serve the needs of the residents of the locality. Neighbourhood-business centres have a maximum commercial floor space of 1,000$m^2$ for the combined area of adjoining or adjacent shops and businesses, whether or not the premises are on the same land or adjacent to or in close proximity to each other. |
| 5 | New neighbourhood business centres are located at or near collector intersections, with the buildings addressing the street frontage and rear parking to provide quality urban design. |
| 6 | On-site parking is provided according to Section 15.4 of this Plan. |
| 7 | Advertising signage is limited to exempt development (ie, sign with a maximum area of 1 square metre) for home businesses or businesses in converted dwelling houses. |
| 8 | Advertising signage in neighbourhood centres is not intrusive to the character of the residential locality. No more than 15% of the street façade elevation area of premises in a neighbourhood centre involves signage. |

# 7.10 EXHIBITION HOMES IN THE URBAN RESIDENTIAL ZONE

Exhibition or “display” homes are business premises.

Exhibition homes and land-sales offices must complement the character of the area. The business use must not interfere with the residential amenity of the locality.

The use of a dwelling house for an exhibition home/sales office is to be limited to a period of two years unless Council is satisfied that a longer period is necessary and will not affect the residential amenity over the extended time.

Off-street car parking is to be provided at the rate applicable according to Section 15.4 of this Plan.

| PO 7.10-1 PLANNING OUTCOMES FOR EXHIBITION HOMES | |
|---|---|
| 1 | The use occurs within a building designed for use as a dwelling house. |
| 2 | The use is limited to 2 years, after which the building is to be converted for use as a dwelling house (subject to Council agreement to extend operations). |
| 3 | Lighting and advertising signs (including use of flags, banners, etc) do not detract from the primary residential character or use of the locality. |
| 4 | Peak-parking demand can be accommodated both on-site and fully within the frontage of the site. |
| 5 | The use of the site does not adversely affect the residential amenity of the area. |

# 7.11 HOME BUSINESSES THE URBAN RESIDENTIAL ZONE

Orange LEP 2000 provides for home businesses to be carried out in residential areas. The purpose of this provision is to provide for small home-based non-retail business operations.

Such businesses can be carried out by up to 3 people (at least one of whom also lives on the land) to undertake a business activity. This limit is to ensure that businesses that are too large for a residential area locate in the appropriately-zoned area. Home businesses must not affect the residential character or amenity of the surrounding area.

If the activity involves industrial processes that would reasonably be expected to disturb residents in the locality, then the business is not suitable as a home business. Similarly, a business that would involve traffic generation beyond that which would reasonably be expected for a residential street, then the business will not be suitable as a home business. In such cases, the business will need to be located in the appropriate industry or business zone.

It is recommended that applicants discuss their proposals openly with their neighbours before proceeding to make an application for a home business, to determine the general attitude of residents to a non-residential activity in the neighbourhood.

| PO 7.11-1 PLANNING OUTCOMES - HOME BUSINESSES IN THE URBAN RESIDENTIAL ZONE | |
|---|---|
| 1 | Activities that involve excessive light or noise or that generate fumes, smoke or smells are not considered appropriate as a home business - of particular concern are “backyard” construction or repairs, where the processes involved can interfere with residents in the vicinity. |
| 2 | Where the use involves a change of classification for a building, fire-safety measures according the Building Code of Australia are taken into account at the application stage and implemented for operation. |
| 3 | On-site parking for each person carrying out the home business is provided. Sufficient parking is available for customers on site and on the street within the frontage of the land. The use must not attract more traffic than can be accommodated within the frontage of the site at any one time. |
| 4 | One professionally-designed and made advertising sign with a maximum area of 1 square metre in the front setback area or attached to the building for each property. |

# 7.12 USE OF DWELLING FOR BED & BREAKFAST ACCOMMODATION

Orange Local Environmental Plan 2000 provides for the establishment of bed & breakfast accommodation within the City. Bed & breakfast developments have grown in popularity in recent years within Orange. The use of houses for bed & breakfast development is encouraged in the City.

Orange LEP 2000 recognises that the use of a house for small-scale tourist accommodation can be carried out with negligible impacts on the surrounding area. As a consequence, the LEP provides for the use of a single bedroom in a house for tourist accommodation as exempt development and up to 3 bedrooms as complying development, subject to specific criteria and conditions.

A local development application is required for the establishment of a bed & breakfast development beyond the scope of Council’s exempt and complying development. An application for a bed & breakfast needs to clearly demonstrate the suitability of the site for the development, having reference to adequate off-street car parking, health standards, fire-protection measures, advertising and water supply.

It is recommended that applicants discuss their proposals openly with their neighbours before proceeding to make an application for a bed & breakfast to determine the general attitude of residents.

| PO 7.12-1 PLANNING OUTCOMES – USE OF DWELLING FOR BED & BREAKFAST ACCOMMODATION | |
|---|---|
| 1 | The bed & breakfast is ancillary to the residential use of the land. |
| 2 | Toilet and bathroom facilities for guests are separate from those used by permanent residents of the home. |
| 3 | Fire-safety measures are provided in accordance with the requirements of the BCA. |
| 4 | Off-street parking is provided in accordance with Section 15.4 of the DCP. |
| 5 | One professionally-designed and made advertising sign with a maximum area of 1m2 in the front setback areas is permitted. |
| 6 | The preparation and handling of food is to be in accordance with the Food Act 1992, food-safety standards and regulations. |
| 7 | The use of the site does not adversely affect the residential amenity of the area. |

# 7.13 DEVELOPMENT IN THE VILLAGE OF LUCKNOW

Lucknow was established as a gold-mining town. The character of the Village is a result of that former mining activity.

Due to much of the Village being affected by former mining activity, development proposals must consider the potential impacts from former mining areas.

The “Lucknow-Former Mining” map indicates areas that are likely to be disturbed by previous mining activity. Applications to develop areas within this area or to develop areas adjacent to the area indicated on the map and that appear to have been used for mining activity must include a report from a geotechnical professional that the land is suitable for the development proposed and that the land is not affected by mine spoil or mine shafts.

Applications are to also include a contamination report identifying that chemical residues resulting from former mining activities do not affect the proposed change of land use.

Development is to be carried out without disturbing mine spoil sites or mining relics.

## VILLAGE CHARACTER

The Village has a number of areas with distinct characteristics that combine to make up the character of Lucknow. Urban development on the north-eastern side of the Mitchell Highway centred on a round hill comprises school and church buildings with associated residences on relatively small lots. Commercial development is centrally located fronting the Highway. Land affected by former mining activity is situated on the fringes of the Village and on steeper slopes. Residential development on larger lots is located south west of the Highway and on Beasley and Phoenix Mine Roads and on Chapel Hill Lane.

## MINE SITES

The Mine Head frames of the Wentworth and Reform Mine sites dominate the centre of the Village. These structures form the potential focus for mine-related heritage/tourism development to interpret the mining history of the Village. Mine-spoil sites also reflect the mining history of the

Village. Mine spoil may also contain heavy metals and contaminants from former mining processes. Mine spoil should be left undisturbed and stabilised to prevent erosion.

## COMMERCIAL DEVELOPMENT

Commercial development should continue to centre on the Mitchell Highway and Beasley Road intersection. New development should reflect the historic character and form of the Village.

## RESIDENTIAL DEVELOPMENT

Residential subdivision should relate to the size of lots in the vicinity and take into account the suitability of the land for development considering slope, soils and land disturbance as a consequence of former mining activity.

Generally a minimum lot area of 1,000m$^2$ is appropriate. A larger area may be necessary in the vicinity of disturbed mine land.



*Photograph - The mining heritage of Lucknow of shafts, spoil heaps, buildings and relics*

| PO 7.13-1 PLANNING OUTCOMES - VILLAGE OF LUCKNOW | |
|---|---|
| 1 | Development proposals involving new buildings or works on or near land identified as being subject to former mine activity include sufficient information to demonstrate to Council's satisfaction that the land is suitable for the development. Particular attention is given to the location of former mine shafts, shallow drives, mine spoil or mining relics. A geotechnical professional prepares the information. |
| 2 | A professionally-prepared report identifying that the land is suitable for development after being investigated for potential land contamination is submitted with a development application for development involving works that will disturb the land. |

| PO 7.13-1 PLANNING OUTCOMES - VILLAGE OF LUCKNOW | |
|---|---|
| 3 | Commercial development is located within the established business core of the Village centred on the Mitchell Highway/Phoenix Mine Road intersection. Buildings and associated signage are designed to relate to the traditional mining character of the Village to reinforce the mining history of the Village. |
| 4 | Mining relics on land subject to development proposals are identified, interpreted and conserved. |
| 5 | Mine spoil areas remain undisturbed except for works associated with stabilising the area to prevent erosion. |
| 6 | Heritage mine sites are made available for the interpretation of the Village's mining history. Such development includes professional interpretation and conservation of the site. |
| 7 | Residential lots have a minimum area of 1,000m2. Larger areas are created on land affected by former mining activity to permit an adequate area for development removed from disturbed sites. |
| 8 | Residential buildings are designed to relate to traditional building forms of the Village. |
| 9 | The development is serviced by the public sewerage and water reticulation system, taking into account the planned capacity of these systems. |

**RELATED INFORMATION – DEVELOPMENT IN THE VILLAGE OF LUCKNOW**

Somerville, J. 1996. *Lucknow Village Heritage Analysis and Guidelines for Development Controls*

# 7.14 DEVELOPMENT IN THE VILLAGE OF SPRING HILL

The Zone objective for the Village Zone in Clause 40 of Orange LEP 2000 identifies village character as a development consideration.

The 1986 Heritage Study described the character of Spring Hill as follows:

> *"This village was established with the coming of the railway to service local farmers in the late 1870s.*
>
> *The nucleus of the village still remains around the fine railway station* [since demolished for State Rail] *along with about 60 buildings, which contribute to its past heritage.*
>
> *It is a quintessential farmer's village of the mid-Victorian period, beautifully sited on rising ground in its countryside surroundings."*



*Photograph – Spring Hill character*

| PO 7.14-1 PLANNING OUTCOMES - VILLAGE OF SPRING HILL | |
|---|---|
| 1 | The low-density character of the Village is retained with lots having a minimum area of 1,000m$^2$. |
| 2 | New buildings are set back to complement the setbacks of existing traditional buildings. |
| 3 | New buildings are designed to complement the traditional architecture of the Village. |
| 4 | The reinstatement of verandahs over the footpath areas is encouraged for buildings positioned on or adjacent to the front boundary. |
| 5 | New development is connected to public utility services. |

# 7.15 DEVELOPMENT IN THE VICINITY OF THE ORANGE BOTANIC GARDENS

The Orange Botanic Gardens was established as part of the planning for the residential development of the North Orange growth area strategies of the 1970s and 80s. The Gardens has since been developed as a major public attraction for the City. The Gardens was located to take advantage of panoramic views over the City to Mt Canobolas. To retain the amenity of the setting of the Orange Botanic Gardens, Orange LEP 2000 provides for setbacks and building-height limits in the area shown shaded as a “scenic area” on the LEP map around the Gardens.

To protect the setting of the Gardens, Orange LEP 2000 requires that buildings are situated in a way that does not adversely affect the outlook from the Gardens.

Buildings within the hatched area adjacent to the Gardens should be single storey only and set back a minimum of 10 metres from the boundary of the Gardens.

Residences should be screened from the Botanic Gardens by a solid fence either of palings or "Meadow" green Colorbond with a height of 1.5 metres. Private gates from residential lots to the Gardens are not permitted.

| PO 7.15-1 PLANNING OUTCOMES – DEVELOPMENT AROUND ORANGE BOTANIC GARDENS | |
|---|---|
| 1 | Lots adjoining the Botanic Gardens have sufficient depth to provide for buildings to be located away from the boundary of the Orange Botanic Gardens. |
| 2 | All buildings are set back a minimum of 10 metres from the boundary of the Orange Botanic Gardens. Buildings more than one storey in height are located at least 30 metres from the Botanic Gardens. |
| 3 | Building materials and external finishes address the principles from the Scenic Area section. |
| 4 | Dividing fences to the Botanic Gardens comprise Colorbond fences without gates in consistent "meadow" green colour, including posts and frames. |

# 7.16 DEVELOPMENT IN THE VICINITY OF CHARLES STURT UNIVERSITY AND LEEDS PARADE

This clause applies to land zoned R1 General Residential south of the Charles Sturt University campus and accessed via Leeds Parade and two adjoining areas zoned B7 Business Park. The area involved is identified on the attached map and was zoned for residential purposes under amendment 6 of Orange LEP 2000. The intention is to create a village feel with a mixture of housing types and student accommodation.

## SUBDIVISION LAYOUT

A masterplan for the precinct is attached in appendix 16.4. The defined road and allotment layout provides for an accessible and permeable network of streets, walkways and open spaces. The layout includes opportunities for detention basins to manage stormwater and provides for buffers from potential noise and odour sources. The masterplan also provides for connectivity with surrounding lands and demonstrates a building buffer on the adjoining B7 Business Park zoned land which will ensure that dwellings are not crowded out by large commercial structures.

| PO 7.16-1 PLANNING OUTCOMES - SUBDIVISION LAYOUT | |
|---|---|
| 1 | Development is consistent with planning outcomes PO 7.2-1 of this plan. |
| 2 | Development of the site is broadly consistent with the adopted masterplan layout contained in appendix 16.4. |
| 3 | A broad range of lot sizes are provided that provide for diversity in housing development and choice. |
| 4 | Road widths are provided consistent with or greater than indicated on the masterplan. |
| 5 | Connectivity within the internal road network is consistent with or greater than indicated on the masterplan. |
| 6 | Future road link connections to adjoining lands are provided for as indicated on the masterplan. |

| PO 7.16-1 PLANNING OUTCOMES - SUBDIVISION LAYOUT | |
|---|---|
| 7 | The intersection with Leeds Parade is upgraded to cater for the likely traffic volumes anticipated by the masterplan as well as the future student housing, business zone, large lot residential areas and adjoining B7 zoned land that will ultimately access Leeds Parade through this site. |
| 8 | Dual occupancy sites are located to the northern side of intersections and roads to minimise overshadowing of neighbouring lots. |

## WATER SENSITIVE URBAN DESIGN

The site comprises land at and above the headwaters of first order streams. First order streams are frequently vulnerable to erosion and scouring if significant additional volumes of overland flow are experienced. As such it is imperative that development of the overall site and individual lots within manage stormwater discharges appropriately.

| PO 7.16-2 PLANNING OUTCOMES - WATER SENSITIVE URBAN DESIGN | |
|---|---|
| 1 | Stormwater runoff from the precinct is managed through appropriate detention basins to manage volumes, quality and runoff speeds to pre-development levels. |
| 2 | Raingardens are incorporated into public open spaces to manage the runoff speeds and water quality. |
| 3 | Development of individual lots minimises impermeable surfaces to reduce the extent of runoff. |
| 4 | Development of individual lots includes raingardens to minimise discharge rates and improve water quality. |

## PEDESTRIAN & CYCLIST AMENITY

The masterplan illustrates a deformed grid layout that provides a high degree of permeability for motorists. This is augmented by the inclusion of midblock walkways on extended blocks. The walkways loosely align to provide for ease of movement without creating gun barrel rat runs. Additionally street widths are sufficient to provide for footpaths and street trees that will provide for a village feel to the pedestrian experience.

Traffic calming speed humps on the principal internal road aligned with walkways will reduce potential conflicts between motorists and pedestrians and/or cyclists. A wide principal road allows space for cyclists on the road. Loosely aligned walkways further help to provide more direct travel routes for alternate modes of travel.

| PO 7.16-3 PLANNING OUTCOMES - PEDESTRIAN AND CYCLIST AMENITY | |
|---|---|
| 1 | Midblock walkways a minimum of 6m wide are provided within extended blocks as indicated on the masterplan in appendix 16.4. |
| 2 | Midblock walkways loosely align to provide a reasonably direct travel route across the precinct, connecting open spaces with the future student housing area. |

| PO 7.16-3 PLANNING OUTCOMES - PEDESTRIAN AND CYCLIST AMENITY | |
|---|---|
| 3 | Side and rear fencing that forms part of the perimeter of this master plan is encouraged to be made of timber construction using a consistent style to other perimeter fencing in the area. Where factory pre-coloured metal fencing is used it must be of a light cream colour so as to blend with any timber fencing that will be visible from beyond the master plan area. |

## SOLAR ACCESS

The majority of lots indicated in the masterplan have been oriented north-south or east west or within a few degrees of such alignments. This configuration has natural benefits for passive solar design and ensures that private outdoor spaces receive a considerable amount of solar access.

| PO 7.16-4 PLANNING OUTCOMES - SOLAR ACCESS | |
|---|---|
| 1 | Lot layouts are consistent with the prevailing orientations indicated in the masterplan, i.e. predominately north-south or east-west, or within a few degrees of such, to maximise solar passive design options. |
| 2 | The majority of lots have a width to depth ratio of 1:1.6 or greater to ensure sufficient space behind primary dwellings for outdoor courtyard space with good solar access. |
| 3 | Dual occupancy sites have a near square configuration and are located to the northern side of intersections to minimise the extent of overshadowing on neighbouring land. |

## PUBLIC SAFETY

Minimal use of culs-de-sac, battleaxe lots and the adoption of modest street curvature helps to maximise passive surveillance of public spaces. Providing generous widths to midblock walkways and ensuring such walkways are in straight lines will deter antisocial use of these features. Bollard lighting within the walkways, particularly at each entrance will also prevent their use as concealment opportunities at night. Open space landscaping needs to be designed to limit concealment opportunities while also providing pleasant visual relief. Placement of street trees is to be considered in relation to the placement of street lights to ensure appropriate night time illumination of footpaths and walkways.

| PO 7.16-5 PLANNING OUTCOMES – PUBLIC SAFETY | |
|---|---|
| 1 | Street trees and street lights are located clear of each other to ensure appropriate illumination of footways as well as roads. |
| 2 | Bollard lighting is incorporated into the entrance of walkways and spaced no further than every 10m along midblock walkways to reduce antisocial use of the walkways and remove potential concealment opportunities. |
| 3 | Open space area landscaping is configured to minimise concealment opportunities and maximise passive surveillance to discourage antisocial use of the area. |
| 4 | Traffic calming speed bumps are incorporated into the main internal road that align with walkways to ensure there are sufficient safe crossing points. |

# 7.17 DEVELOPMENT IN THE VICINITY OF LEEDS PARADE AND MIRIAM DRIVE

This Part applies to land zoned R1 General Residential on the northern side of Miriam Drive and west of Leeds Parade. The land is identified as 274 Leeds Parade (Lot 211 DP 1177178) as shown on Map 19 – Leeds Parade/Miriam Drive. The intention is to create a residential design outcome that respects development to Leeds Parade, co-ordinated grid street layout and consideration of urban concept design between land holdings to the north of Miriam Drive.

## SUBDIVISION LAYOUT

A masterplan for the precinct is attached in Map 19. The defined road and allotment layout provides for an accessible and permeable network of streets, walkways and open spaces. The layout includes opportunities for detention basins to manage stormwater. The DCP also addresses visual and access treatment to Leeds Parade. The masterplan also provides for connectivity with surrounding lands to the north of 274 Leeds Parade.

| PO 7.17-1 PLANNING OUTCOMES – SUBDIVISION LAYOUT | |
|---|---|
| 1 | The subdivision layout is generally in accordance with the Conceptual Subdivision Layout (Map 19). |
| 2 | Subdivision design and construction complies with the Orange City Council Subdivision and Development Code. |
| 3 | Lots are oriented to maximise energy-efficiency principles. Where practicable, lots are rectangular rather than splay shaped and oriented to provide the long axis within the range N 20 degrees W to N 30 degrees E or E 20 degrees N to E 30 degrees S. |
| 4 | An achievable range of lot sizes are provided that provide for diversity in housing development and choice. A minimum lot size of 550m$^2$ overall. |
| 5 | Road widths are provided consistent with or greater than indicated on the Conceptual Subdivision Layout (Map 19). |
| 6 | Connectivity within the internal road network is consistent with the Conceptual Subdivision Layout (Map 19). |
| 7 | Future road link connections to adjoining lands are provided for as indicated on the Conceptual Subdivision Layout (Map 19). |
| 8 | Battleaxe lots have a minimum area of 650m$^2$, excluding the access handle. Access handles have a minimum width of 4.5m incorporating a 3m- wide driveway. |
| 9 | Local collector roads connect to Leeds Parade generally at the locations shown on the Conceptual Subdivision Layout (Map 19). Future road connections to adjoining land are located generally in accordance with the Conceptual Subdivision Layout. |
| 10 | Residential lots have direct frontage and access to a public road. Access is not available to Leeds Parade for adjoining lots. |
| 11 | On-site stormwater detention basins and drainage reserves are provided. |
| 12 | All utility services are provided to the proposed lots. |
| 13 | Significant landscape features are retained and disturbance to natural vegetation, landform and overland-flow paths is minimised. |

| PO 7.17-1 PLANNING OUTCOMES – SUBDIVISION LAYOUT | |
|---|---|
| 14 | Public open-space areas are sited in accordance with the Conceptual Subdivision Layout (Map 19). Public open-space contains significant trees/tree groups, threatened species, populations, ecological communities or their habitats. Public open-space areas incorporate stormwater detention basins where required. |
| 15 | A 15m- wide landscape buffer with a vegetative height of 15-20m is provided adjacent to the rear western boundary of lots adjoining Leeds Parade. |

## WATER SENSITIVE URBAN DESIGN

The site comprises land at and above the headwaters of first order streams. First order streams are frequently vulnerable to erosion and scouring if significant additional volumes of overland flow are experienced. As such it is imperative that development of the overall site and individual lots within manage stormwater discharges appropriately.

| PO 7.17-2 PLANNING OUTCOMES – WATER SENSITIVE URBAN DESIGN | |
|---|---|
| 1 | Stormwater runoff from the precinct is managed through appropriate detention basins to manage volumes, quality and runoff speeds to pre-development levels. |
| 2 | Raingardens are incorporated into public open spaces to manage the runoff speeds and water quality. |
| 3 | Development of individual lots minimises impermeable surfaces to reduce the extent of runoff. |
| 4 | Development of individual lots includes raingardens to minimise discharge rates and improve water quality. |

## PEDESTRIAN AND CYCLIST AMENITY

The Conceptual Subdivision Layout illustrates a deformed grid layout that provides a high degree of permeability for motorists. This is augmented by the inclusion of midblock walkways on extended blocks. The walkways loosely align to provide for ease of movement without creating gun barrel rat runs.

Additionally street widths are sufficient to provide for footpaths and street trees that will provide for a village feel to the pedestrian experience.

Traffic calming speed humps on the principal internal road aligned with walkways will reduce potential conflicts between motorists and pedestrians and/or cyclists. A wide principal road allows space for cyclists on the road. Road locations further help to provide more direct travel routes for alternate modes of travel on footpaths and roadside cycling routes.

| PO 7.17-3 PLANNING OUTCOMES – PEDESTRIAN AND CYCLIST AMENITY | |
|---|---|
| 1 | Walkways are incorporated with road locations as indicated on the Conceptual Subdivision Layout (Map 19). |
| 2 | Road design loosely aligns to provide a reasonably direct travel route across the precinct, connecting open spaces with the future student housing area further north. |

| PO 7.17-3 PLANNING OUTCOMES – PEDESTRIAN AND CYCLIST AMENITY | |
|---|---|
| 3 | Side and rear fencing that forms part of the perimeter of the precinct is encouraged to be made of timber or Colorbond construction using a consistent style to other perimeter fencing in the area. Where factory pre-coloured metal fencing is used it must be of a light cream colour so as to blend with any timber fencing that will be visible from beyond the precinct. |

## SOLAR ACCESS

The majority of lots indicated in the masterplan have been oriented north-south or east west or within a few degrees of such alignments. This configuration has natural benefits for passive solar design and ensures that private outdoor spaces receive a considerable amount of solar access.

| PO 7.17-4 PLANNING OUTCOMES – SOLAR ACCESS | |
|---|---|
| 1 | Lot layouts are consistent with the prevailing orientations indicated in the Conceptual Subdivision Layout (Map 19) ie, predominately north-south or east-west, or within a few degrees of such, to maximise solar passive design options. |
| 2 | The majority of lots have a width to depth ratio of 1:1.6 or greater to ensure sufficient space behind primary dwellings for outdoor courtyard space with good solar access. |
| 3 | Dual occupancy sites have a near square configuration and are located to the northern side of intersections to minimise the extent of overshadowing on neighbouring land. |

## PUBLIC SAFETY

Minimal use of culs-de-sac, battleaxe lots and the adoption of modest street curvature helps to maximise passive surveillance of public spaces. Providing open road areas and minimal hidden walkways will deter antisocial use of these features. Open space landscaping needs to be designed to limit concealment opportunities while also providing pleasant visual relief. Placement of street trees is to be considered in relation to the placement of street lights to ensure appropriate nighttime illumination of footpaths.

| PO 7.17-5 PLANNING OUTCOMES – PUBLIC SAFETY | |
|---|---|
| 1 | Street trees and street lights are located clear of each other to ensure appropriate illumination of footways as well as roads. |
| 2 | Open space area landscaping is configured to minimise concealment opportunities and maximise passive surveillance to discourage antisocial use of the area. |
| 3 | Traffic calming speed bumps are incorporated into the main internal road that align with walkways to ensure there are sufficient safe crossing points. |

## FENCING

Front fences and walls:

- assist in highlighting entrances and creating a sense of identity within the streetscape.
- are constructed of materials compatible with associated housing and with fences visible from the site that positively contribute to the streetscape.

- provide for facilities in the street frontage area such as mail boxes.

| PO 7.17-6 PLANNING OUTCOMES – FENCING | |
|---|---|
| 1 | Front fences and walls have a maximum height of 1.2 metres. |
| 2 | Front fences and walls are designed to use similar or compatible materials used in the locality to positively contribute to the streetscape. |
| 3 | Front fencing is integrated with a variety of plantings. |
| 4 | Colorbond, timber, masonry or similar solid fencing is not erected on Leeds Parade forward of the 15m front dwelling setback (Note: relates to Lot 12 only). |
| 5 | Side fences on corner lots fronting a street:<br>• have a maximum height of 1.8 metres behind the front building line of the dwelling<br>• use similar or compatible materials used in the locality to positively contribute to the streetscape |

## ALLOMENTS ADJACENT TO LEEDS PARADE

Allotment facing the eastern side of Leeds Parade will not have access to Leeds Parade.

As part of the subdivision, landscape treatment and fencing is to be constructed. A detailed landscape and fencing plan will be required with the development application for subdivision. Landscaping is to be placed in the shown open space buffer area with rear fencing not to include access gates.

Provide a visual landscape barrier between rear yards and Leeds Parade to achieve privacy.

Provide visual amenity when travelling along Leeds Parade.

Reduce the visual dominance of sheds in yards facing Leeds Parade in terms of width and height.

| PO 7.17-7 PLANNING OUTCOMES – ALLOTMENTS ADJACENT TO LEEDS PARADE | |
|---|---|
| 1 | The location and design of backyard sheds is to be a minimum width of 7 metres with landscaping situated between the rear boundary and the shed. |
| 2 | A detailed landscape plan is required as part of an application for a shed or other outbuilding (studio, greenhouse, BBQ structure, etc). |
| 3 | Rear sheds are to be no higher than 3.5 metres ridge height and 2.5 metres wall height. |
| 4 | Dwellings on these lots will face an internal street with associated access from that internal street. |

**MAP 19 – LEEDS PARADE/MIRIAM DRIVE CONCEPTUAL SUBDIVISION LAYOUT**



# 7.18 DEVELOPMENT AT 277 CARGO ROAD

This Part describes the place-specific principles and design controls that apply to development within 277 Cargo Road. The principles and design controls are intended to guide the development of the precinct as a resilient, inclusive and liveable neighbourhood that supports Orange's identity as a sustainable regional city. To this end, this Part has the following aims—

(a) preserve the scenic landscape character,

(b) protect and enhance the rural entry into the City,

(c) ensure good design at all scales,

(d) protect the neighbouring drinking water catchment through appropriate land and water cycle management,

(e) support the provision of diverse lots and housing to support the communities needs,

(f) promote resilience against natural hazards and climate change,

(g) ensure the sustainable use of energy, infrastructure, and resources, and

(h) ensure buildings and places are universally accessible and inclusive.

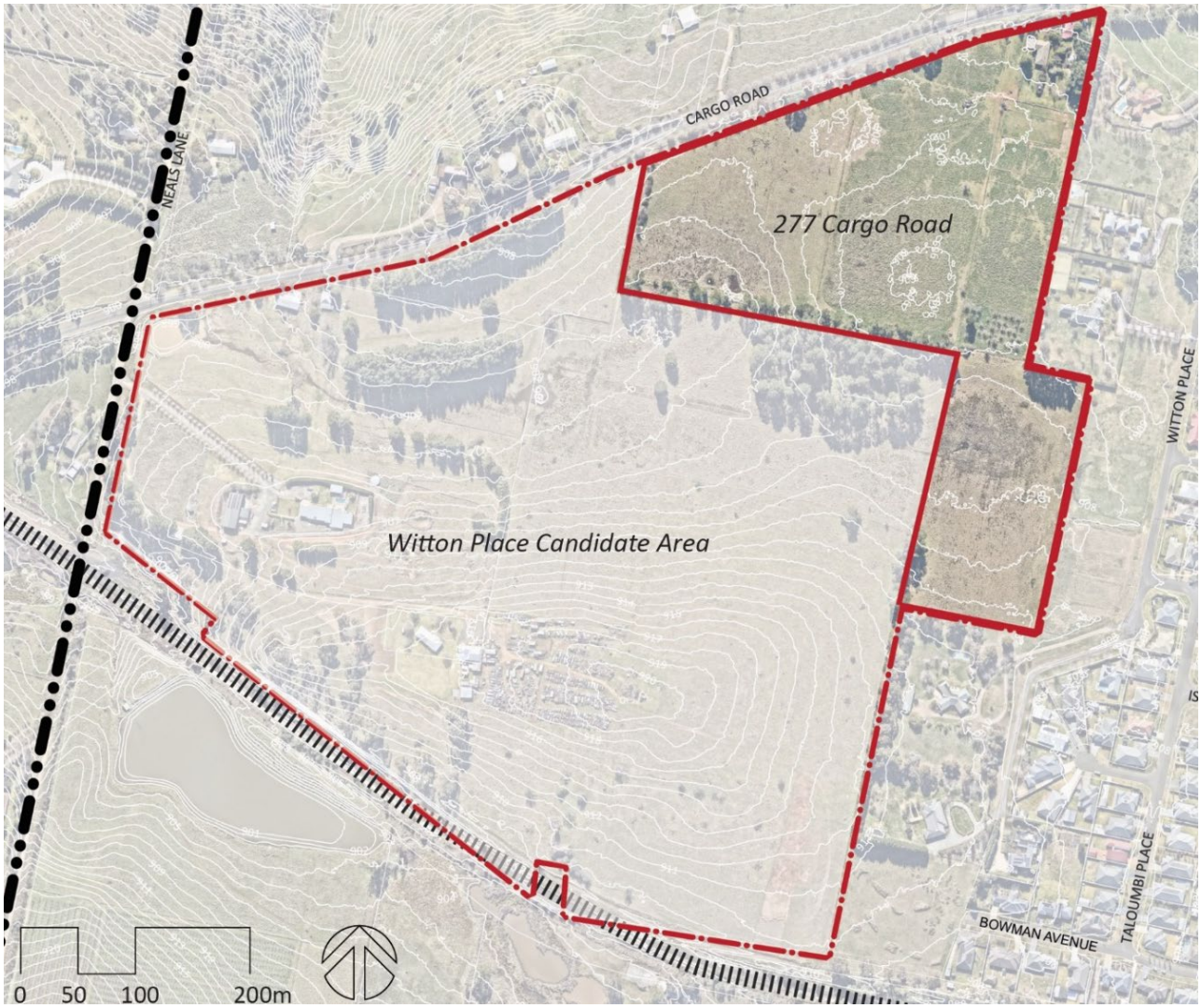



*Figure 7.18-1—277 Cargo Road*

**Relationship to other controls**

Unless otherwise stated, the provisions of the DCP other than those described in this Part continue to apply to development on land to which this chapter applies. Where there is an inconsistency between the provisions of this Part and any other provision of the DCP, the provisions of this Part will prevail.

**Transitional arrangements**

This Part only applies to applications made on or after the date of its commencement. In this regard—

(a) any application lodged but not yet determined prior to the date of commencement of this Part will be assessed in accordance with any other provisions of this DCP (including those provided in any prior version of the DCP) that applied at the time of lodgement,

(b) any application to modify a development consent lodged in relation to a notice of determination issued prior to the date of commencement of this Part will be assessed in accordance with any other provisions of this DCP (including those provided in any prior version of the DCP) that applied to the development at the time of issuance of the notice of determination,

(c) any application for a review of determination lodged in relation to a notice of determination issued prior to the date of commencement of this Part will be assessed in accordance with any other provisions of this DCP (including those provided in any prior version of the DCP) that applied to the development at the time of the issuance of the notice of determination.

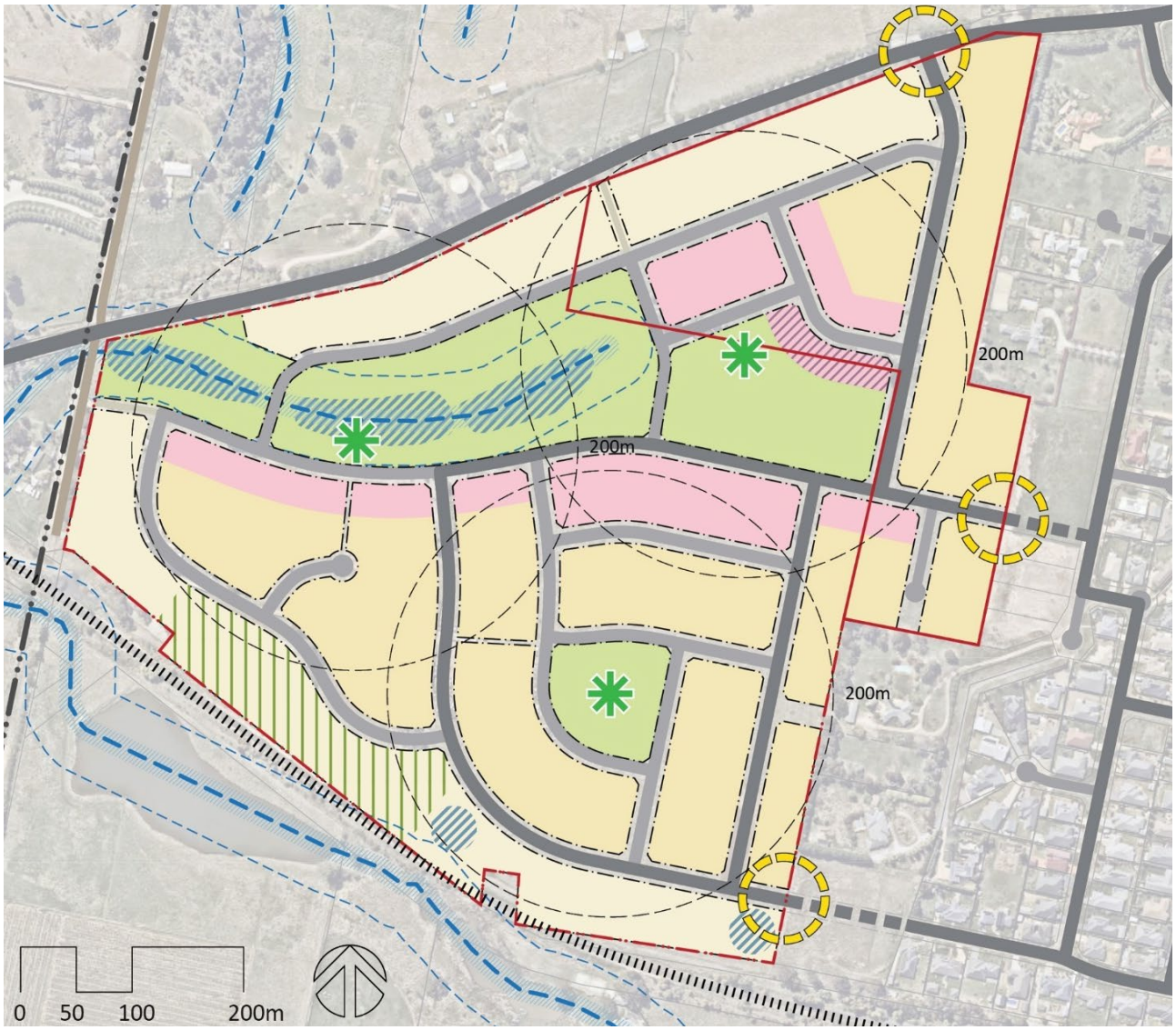
**Design Principles**

| | |
|---|---|
| *Principle 1—Respond to Country* | Responding to Country is the starting point for good design. It means taking a Country-centred approach to place design that recognises the importance of traditional ways of connecting with and caring for the land. It also means understanding the unique landscape, cultural and ecological qualities of each site, and how these inform its 'place' as part of Country. |
| *Principle 2 – Celebrate local character* | Place design responds to the site's unique landscape and townscape qualities and provides opportunities for great place making and a distinctive local character. |
| *Principle 3— Protect scenic values and views* | Place design preserves and enhances the unique scenic qualities and views associated with the site, including its role as a visual gateway to the City of Orange and its setting within the City's western hillscapes. |
| *Principle 4— Fit with context* | Place design achieves a good fit with its context, and complements and contributes to the City's wider character and liveability, including the site's established Ploughmans Valley context. |
| *Principle 5 — Provide housing diversity and choice* | Place design should provide for a diverse range of housing needs over time by enabling an adaptable mix of compatible lot sizes, housing types, tenures and affordability levels. |
| *Principle 6— Provide connected, healthy and inclusive places* | Place design fosters a sense of belonging and community, and provides for safe, walkable, and beautiful streets that connect people to homes, open spaces and surrounding communities. |

| | |
|---|---|
| *Principle 7 — Design with nature* | Place design prioritises the protection of biodiversity 'hot spots', including riparian zones and remnant native vegetation communities, and protects natural site features including landform, hydrology, groundwater sources and geology. |
| *Principle 8 – Protect water catchments* | Place design should protect the drinking water catchment through the inclusion of appropriate water quality management and water sensitive urban design (WSUD) infrastructure. |
| *Principle 9—Sustainability and resilience* | Place design should manage risks and hazards, including climate change, and promote sustainable neighbourhoods. |

**Urban design concept**

Figure 7.18-2 shows Council's adopted urban design concept for the Witton Place Candidate Area as identified in the Orange Local Housing Strategy. The urban design concept translates the design principles into a preferred urban form and land use concept at the 'whole-of-precinct' scale. This chapter only applies to the first stage known as 277 Cargo Road as identified in the staging plan (Figure 7.18-3).



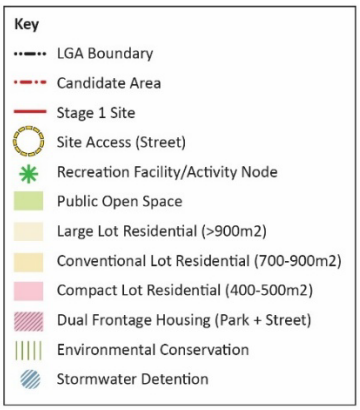




*Figure 7.18-2—Witton Place Candidate Area Structure Plan*

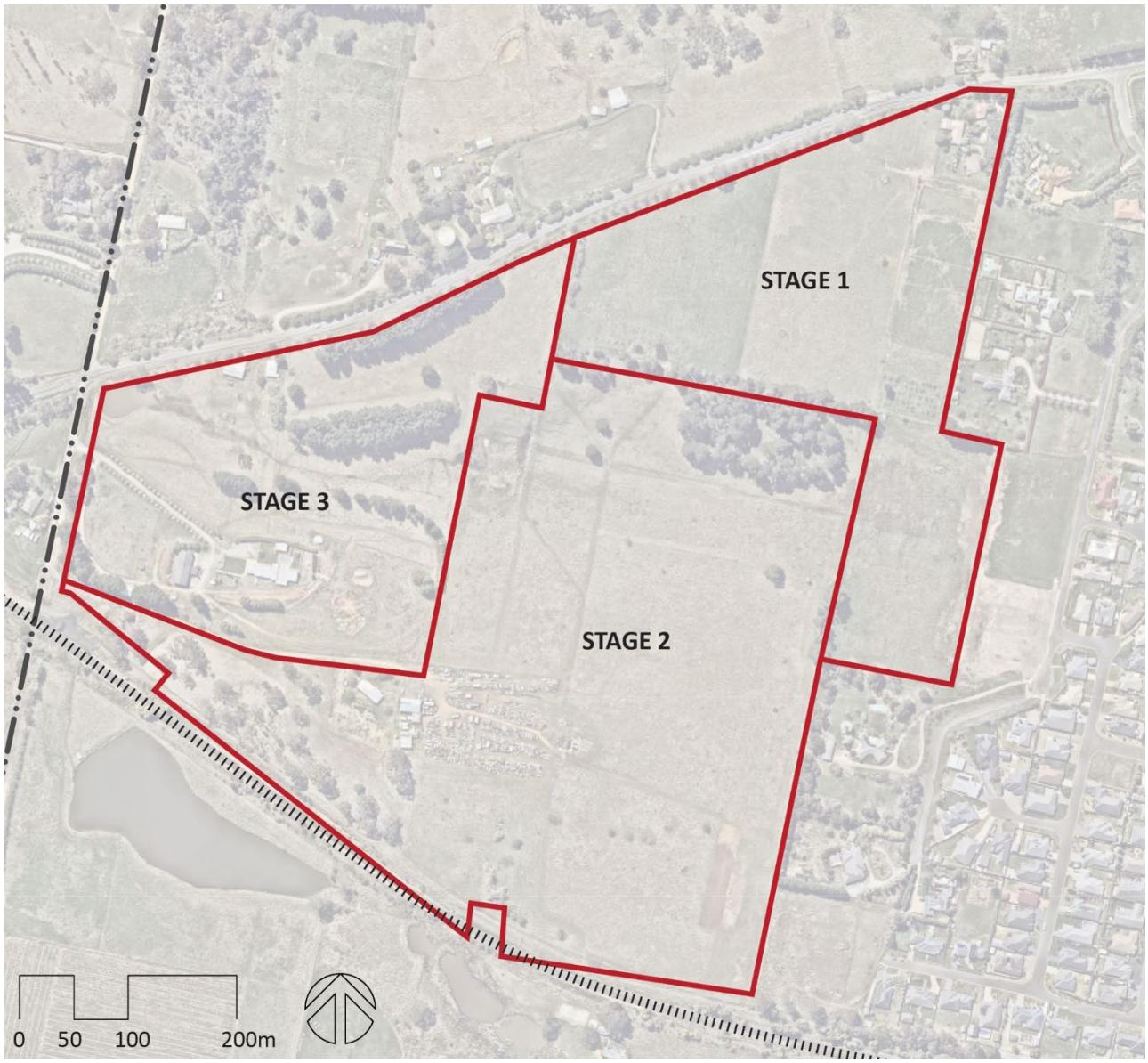



*Figure 7.18-3—Staging Plan*

**Important character elements**

The urban design concept embodies a number of important character elements. These describe the precinct-specific place qualities that development is required to support. Supporting the important character elements is a task shared by all development proposals, regardless of their scale or nature.

The important character elements for 277 Cargo Road are intended to work in combination with each other and support the principle of a precinct 'whole' that is greater than the sum of its 'parts'. In this respect, development proposals need to consider each element as an essential part of a combined whole. Achieving consistency with the important character elements will ensure each development 'knows its place' within the precinct's overall vision, achieves a good fit with neighbours and contributes to the accumulation of shared place qualities over time.

The important character elements for 277 Cargo Road are described below.

1. *Respond to Country*

   - Place design should prioritise opportunities for Connecting with Country in accordance with the processes, principles and design guidance described in the NSW Connecting with Country framework. Place design safeguards potentially culturally significant features, including waterways and riparian zones, topographic features and views to surrounding landmarks, including Gaanha Bula—Mount Canobolas.

2. *Natural landscape and scenic protection*

   - Place design recognises the setting of the site as a visual gateway into the City. Open space is designed so that high points maintain their natural landform qualities and enable public views and vistas to Gaanha Bula—Mount Canobolas and surrounding hillscapes.

   - Areas of visual prominence, ecological importance, including areas of significant native vegetation and habitat, are identified, and protected through the public open space network. Waterways and riparian zones are protected by being incorporated into the public open space network.

3. *Movement networks*

   - Place design incorporates a legible hierarchy of streets and public open spaces. Street and public open space layout supports opportunities for meeting places (activity nodes) and wayfinding. The street network provides for future street connections to the subsequent stages, Witton Place and Bowman Avenue.

4. *Land use and urban form*

   - Street block and lot patterns enable robustness and adaptability to a variety of housing needs as these change over time. Streets and street blocks are oriented to enable a variety of public and private view sharing opportunities, and to maintain a strong visual connection between the site and its surrounding natural and rural landscapes. Topography and natural landscape elements are expressed through the formation of the street and public open space networks, and through responsive variations in lot and street block sizes. Lot sizes and dwelling density are located to respond to variations in site qualities and topography.

   - Place design responds to the long-term social needs of the City, including those for housing diversity and affordability. Visual richness is provided through a diversity of compatible housing types and styles, with smaller lot housing located close to amenity (parks and green spaces), enabling aging in place at a neighbourhood scale. Housing is located to face onto public open space, providing a well-designed built edge delineating the public and private realms.

   - Larger lots are located along the Cargo Road edge to preserve the road corridor's semi-rural character and are located in areas with higher visual prominence. A transition in residential block sizes along the candidate area's other edges to match in with different edge conditions (eg, Cargo Road to the north, railway line to the south). Lot sizes along the candidate area's eastern edge are compatible with the established low-density character of Ploughmans Valley. Larger lots interfacing agriculture land protect operational viability through appropriate buffers and lot sizes.

5. *Public domain*

   - Place design supports existing urban neighbourhoods by extending the City's green and social infrastructure, and by enabling the provision of new parks and recreational infrastructure accessible to existing residents. The street network responds to topography

on the site and provides for a well-connected, comfortable public domain that creates opportunities for the community to easily move within and beyond the site.

- A connected open space network provides opportunities for community focal points and opportunities to gather, providing opportunities for play, exercise and healthy living for people of all ages and abilities.

**Controls**

## PO 7.18-1 CONNECTING WITH COUNTRY

| Objectives | | Design Criteria | |
|---|---|---|---|
| O1 | To ensure development prioritises opportunities to Connect with Country and recognises the importance of traditional ways of connecting with and caring for the land. | D1 | Development prioritises opportunities for Connecting with Country in accordance with the processes, principles and design guidance described in the NSW *Connecting with Country* framework. |
| | | D2 | Place design safeguards potentially culturally significant features, including waterways and riparian zones, topographic features and views to surrounding landmarks, including Gaanha Bula—Mount Canobolas. |

## PO 7.18-2 DESIRED FUTURE CHARACTER

| Objectives | | Design Criteria | |
|---|---|---|---|
| O1 | To ensure development responds to the site's unique landscape and townscape qualities to ensure great place making and a distinctive local character. | D1 | Development supports the precinct's design principles. |
| | | D2 | Development complements and where possible enhances the precinct's important character elements. |
| | | D3 | Development is generally in accordance with the urban design concept provided in Figure 7.18-2. |
| | | D4 | Development provides visual richness through a diversity of compatible housing types and styles, with smaller lot housing located close to amenity (eg, parks and green spaces). |

## PO7.18-3 VIEWS AND SCENIC QUALITY

| Objectives | | Design Criteria | |
|---|---|---|---|
| O1 | To promote development outcomes that respond to the sites, rural context, landform, and scenic qualities, and as a visual gateway for the City. | D1 | District and local views are preserved and enhanced to improve legibility and wayfinding. |
| | | D2 | Larger lots are located along the Cargo Road edge to preserve the road corridor's semi-rural character. |

| Objectives | | Design Criteria | |
|---|---|---|---|
| | | D3 | Views to Gaanha Bula—Mount Canobolas and surrounding rural hillscapes are celebrated through place design. |
| | | D4 | View sharing is encouraged through complementary siting of buildings, responsive design, and well-positioned landscaping. |
| | | D5 | Open space is located so that high points maintain their natural landform qualities and enable public views and vistas to Gaanha Bula—Mount Canobolas. |
| | | D6 | Streets and street blocks are oriented to enable a variety of public and private view sharing opportunities (as indicated in Figure 7.18-5), and to maintain a strong visual connection between the site and its surrounding natural and rural landscapes. |

## PO7.18-4 SUBDIVISION, STREET NETWORK AND OPEN SPACE DESIGN

| Objectives | | Design Criteria | |
|---|---|---|---|
| O1 | Subdivision design is to:<br>(a) preserve the sense of the topography and views from the site,<br>(b) retain significant biodiversity assets and drainage corridors,<br>(c) create a legible road network and street hierarchy that responds to the topography on the site and provides for a well-connected, comfortable public domain that creates opportunities for the community to easily move within and beyond the site,<br>(d) ensure connected open space network provides opportunities for community focal points and opportunities to gather,<br>(e) provide permeable, legible, convenient and safe street network for active transport,<br>(f) ensure green and blue spaces and networks are incorporated as building blocks of neighbourhood character and liveability, | D1 | Subdivision design facilitates the precinct layout indicated in Figure 7.18-2. |
| | | D2 | Subdivision design facilitates a legible the street network and hierarchy indicated in Figure 7.18-4. |
| | | D3 | Subdivision design supports existing urban neighbourhoods by extending the City's green and social infrastructure, and by enabling the provision of new parks and recreational infrastructure accessible to existing residents. |
| | | D4 | Street and public open space layout supports opportunities for meeting places (activity nodes) and wayfinding. |
| | | D5 | Topography and natural landscape elements are expressed through the formation of the street and public open space (green grid) networks, and through responsive variations in lot and street block sizes. |
| | | D6 | Roads and streets are not to proceed through natural features, including native mature trees, or existing biodiversity strands. |

| Objectives | | Design Criteria | |
|---|---|---|---|
| | (g) ensure green and blue infrastructure supports natural rehydration of the landscape and regeneration of groundwater sources. | D7 | Public domain and open space are designed to enhance safety and security, consistent with the Safety by Design principles. |
| | | D8 | Subdivision design and public domain design are to incorporate Water Sensitive Urban Design (WSUD). |
| | | D9 | Urban heat is managed through the provision for cool landscapes at the neighbourhood scale, including the strategic allocation of green and blue spaces and provision for the incorporation of WSUD infrastructure in road reserves and other public spaces. |
| | | D10 | Waterways and stormwater management are integrated into the green infrastructure network and is informed by total water cycle management principles consistent with the strategy indicated in Figure 7.18-2. |
| | | D11 | Appropriate provision is made for appropriate water quality management infrastructure, including wetlands. |
| | | D12 | The public stormwater management network is designed to achieve a reduction in pollutant loads for total suspended solids, phosphorous and nitrogen of 10% from pre-development loads. |
| | | D13 | Place design supports the long-term expansion of the City's urban tree canopy in accordance with Council's adopted *Greening Orange – Our Orange Urban Forest Strategy*. |
| O2 | To provide road networks that can accommodate a higher level of transport infrastructure and facilitate equitable sharing of the road network, prioritising the needs of pedestrians and cyclists first. | D14 | Subdivision design minimises demand for vehicle trips by incorporating a permeable and walkable street grid and public space network, optimising the feasibility of future public transport (bus) routes through the appropriate location of smaller lot housing, and by connecting to the City's strategic shared path network. |
| | | D15 | Intersections are designed to maximise ease of movement for pedestrians and cyclists, and buses, and to slow vehicular traffic. |

| Objectives | | Design Criteria | |
|---|---|---|---|
| | | D16 | Lots adjoining Cargo Road are not to have direct access to Cargo Road (excluding existing dwellings). |
| | | D17 | Streets are to be designed to integrate traffic calming measures. |
| O3 | To encourage healthy living, social interaction, and environmentally responsible forms of transport through active transport options. | D18 | A cycle and pedestrian network is provided in accordance with 7.18-5. |
| | | D19 | Footpaths are to be provided in accordance with Council's Subdivision and Development Code. |
| | | D20 | Shared paths are at least 2.5 metres wide to accommodate both pedestrians and cyclists and are separated from vehicular traffic in accordance with 7.18-5. |
| | | D21 | Paths are well lit, with appropriate signage and road markings. |

## PO7.18-5 LOT SIZE, ORIENTATION AND LAYOUT

| Objectives | | Design Criteria | |
|---|---|---|---|
| O1 | Subdivision design is to:<br>(a) ensure development occurs in a logical and co-ordinated manner,<br>(b) preserve the rural character of the entry into Orange,<br>(c) retain and protect existing trees and vegetation,<br>(d) establish housing diversity and mix within neighbourhoods. | D1 | The preferred block orientation is established in Figure 7.18-2. |
| | | D2 | Subdivision design provides for a transition in residential lot and street block sizes the edges to match in with different edge conditions (e.g. Cargo Road to the north and Ploughmans Valley). |
| | | D3 | Lot sizes along Cargo Road maintain the rural entry into the City by providing significant private landscaping and rural style fence treatments. |
| | | D4 | Lot sizes along the eastern edge are compatible with the established low-density character of Ploughmans Valley. |
| | | D5 | Lot sizes and dwelling density are located to respond to variations in site qualities and topography. |
| | | D6 | Lot layout and sizing is designed to protect areas of ecological importance, including areas of significant native vegetation and habitat. |

| Objectives | | Design Criteria | |
|---|---|---|---|
| | | D7 | Development applications are to minimise the extent of any cut and fill likely to be required to accommodate future development. |
| | | D8 | Subdivision design ensures that the opportunities for connection into future development of subsequent stages are provided. |
| | | D9 | Retain and incorporate mature trees and biodiversity assets (excluding the pine tree plantations) into the subdivision design. |
| | | D10 | Lots are fully serviced and have direct frontage/access to a public road. |
| | | D11 | The creation of battleaxe lots may be considered where:<br>(a) conventional frontage to a primary road is restricted or denied, or<br>(b) the lots front public open space.<br>In considering an application for the creation of a battleaxe lot, Council may take into account:<br>• the existing street and lot layout<br>• physical constraints that inhibit the creation of other lot types<br>• the likely impacts on the amenity of adjoining properties<br>• the desired future character of the locality |
| | | D12 | Each battleaxe lot must have its own access handle with frontage to a public road. |
| | | D13 | A mix of lot sizes is to be provided, which responds to the long-term social needs of the City, including those for housing diversity and affordability. |
| | | D14 | Lots are rectangular. Where lots are an irregular shape, they are large enough and oriented appropriately to enable dwellings to meet the controls in this DCP. |

| Objectives | | Design Criteria | |
|---|---|---|---|
| O2 | To ensure development is sited to maintain a rural entry into the City. | D15 | Lots onto Cargo Road require a building envelope at subdivision stage for dwellings and associated outbuildings. |
| | | D16 | Lots onto Cargo Road are to have a minimum rear setback of 30 metres. |
| | | D17 | Lots onto Cargo Road may have a maximum of one (1) outbuilding. |
| | | D18 | Post and rail fencing is to be provided along Cargo Road and on side boundaries of lots along Cargo Road. |
| | | D19 | Lots onto Cargo Road are to provide at least two 100L tree (minimum height of at least 8 meters) 10 meters of the rear setback. |

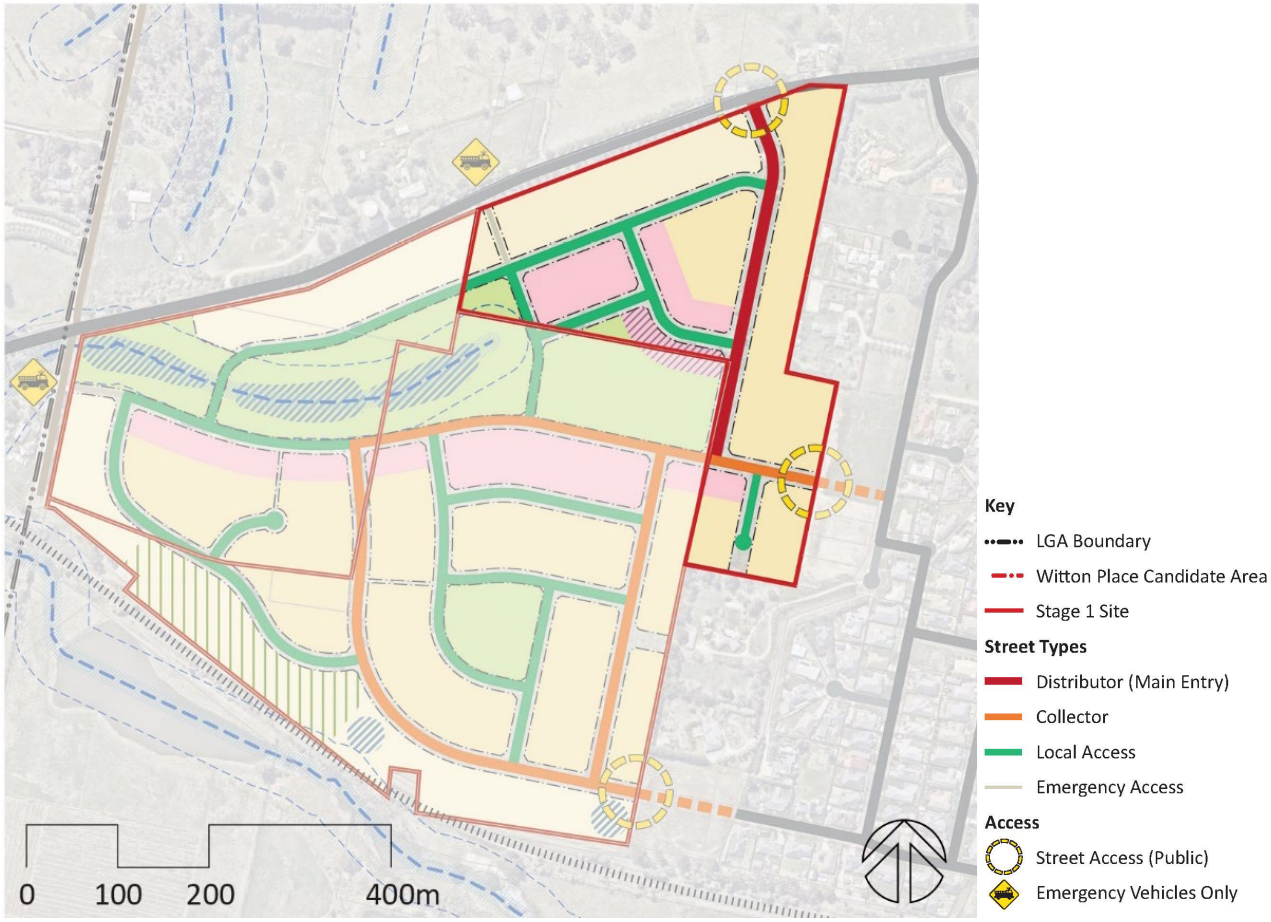



*Figure 7.18-4—Street Hierarchy*

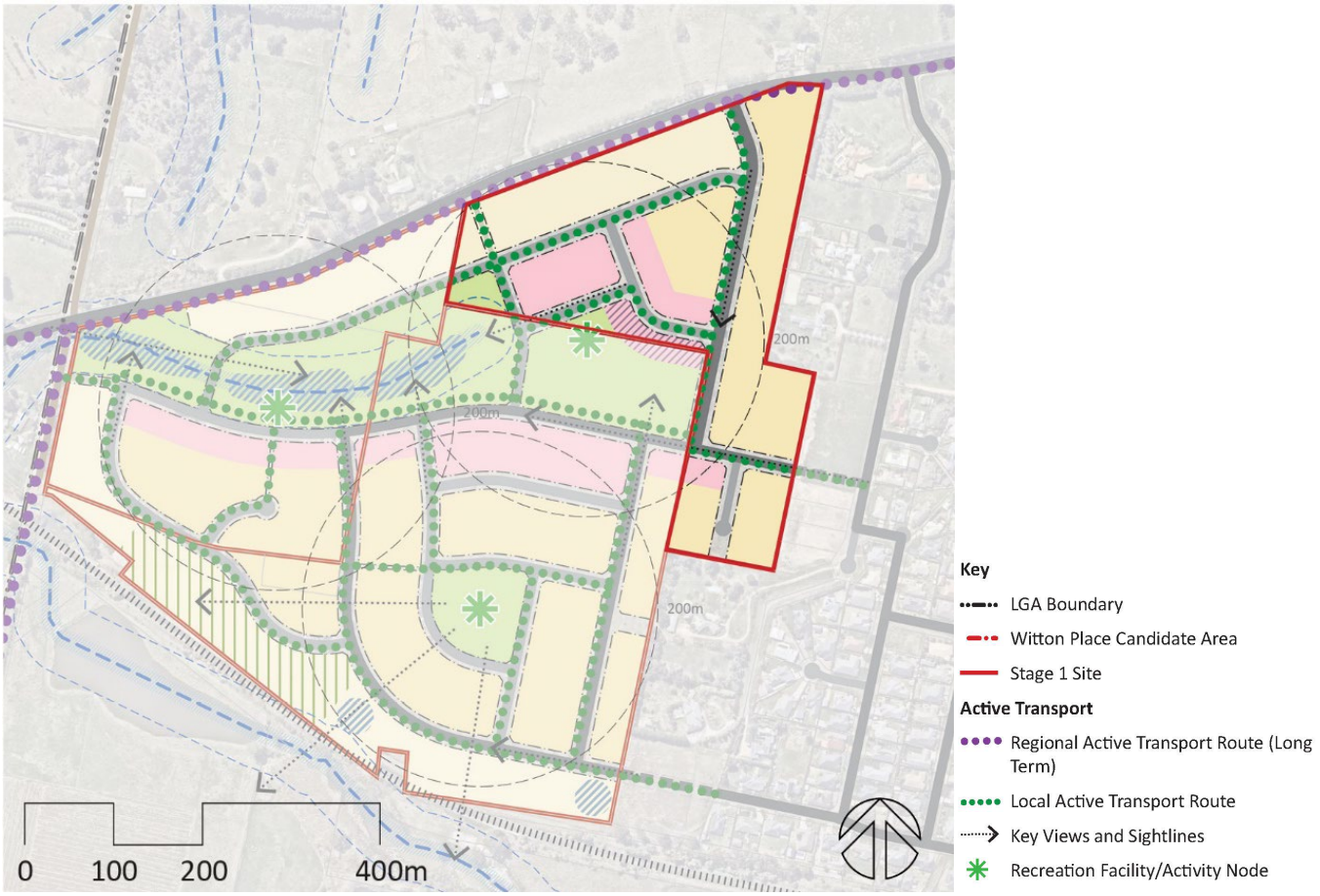



*Figure 7.18-5—Active Transport Network*

(next page is Page 8.1)